

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

CMA CGM S.A., *Respondent*

DOCKET NO. 24-21

Served: September 8, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

INITIAL DECISION¹

I. INTRODUCTION

On May 15, 2024, the Office of the Secretary (“OS”) served Complainant PKDC, LLC’s, Verified Complaint (“Complaint”) on Respondent CMA CGM S.A. The Complaint alleges that Respondent violated 46 U.S.C. §§ 41102(c), 41104(a)(2), 41104(a)(9), and 41104(a)(10), and 46 C.F.R. § 545.5, because Respondent had systematically refused to meet service commitments that were set forth in a service contract between the parties, required that extracontractual surcharges be paid prior to performance of service commitments, and assessed unreasonable detention charges. (*See generally* Complaint). Complainant’s claim under Section 41104(a)(9) was eventually dismissed.

Respondent filed a Verified Answer (“Answer”) on January 8, 2025. Respondent acknowledged that it had a service contract with Complainant for the 2021-2022 period, but generally denied liability.

After this matter proceeded through discovery, Complainant filed its Opening Brief and accompanying materials on May 26, 2026. Respondent filed its Reply Brief (“Response”) and accompanying materials on June 29, 2026. Complainant filed Complainant’s Reply (“Reply”) to Respondent’s Brief on July 7, 2026. Complainant and Respondent also filed motions for confidential treatment along with the Opening Brief and Response.

After carefully reviewing the Opening Brief, Response, Reply, and accompanying materials, I find that Complainant carried its burden of proving that Respondent violated Sections 41102(c), 41104(a)(2), and 41104(a)(10) of the Shipping Act regarding Respondent’s shipping practices during the 2021-2022 period.

¹ This initial decision will become the decision of the Commission in the absence of review by the Commission. Any party may file exceptions to this decision within twenty-two days of the date of service. (46 C.F.R. § 502.227).

I also find that Complainant carried its burden of proving that some of the detention charges by Respondent during 2022 violated Section 41102(c) of the Shipping Act.

Because of Respondent's Shipping Act violations, I find that Complainant is entitled to \$16,623,189.63 in reparations plus interest under Section 41305(a) of the Shipping Act from October 9, 2021, and an additional \$141,305 plus interest from November 1, 2022. My findings and reasoning are discussed below.

II. BACKGROUND

Complainant filed its Complaint, which was served by OS on May 15, 2024. In Count I, Complainant alleges that Respondent "systematically refus[ed] to meet its commitments to Complainant and coerc[ed] extracontractual payments from Complainant including for P[eak] S[eason] S[urcharge] and premium services," thus resulting in a violation of Section 41102(c). (Complaint, at 10). In Count II, Complainant alleges a different violation of Section 41102(c), as well as 46 C.F.R. § 545.5, by imposing unreasonable demurrage and detention charges in violation of the incentive principle. (Complaint, at 10). Count III alleges a violation of Section 41104(a)(2), the so-called "Filed Rate Doctrine," because Respondent allegedly refused "to meet its service commitments to Complainant and extract[ed] extracontractual payments from Complainant including PSS and premium services[.]" (Complaint, at 10). And Count V alleges that Respondent refused to deal or negotiate under Section 41104(a)(10) with Complainant by refusing to meet its service commitments. (Complaint, at 11). Count IV, alleging a violation of Section 41104(a)(9) for alleging an undue preference or advantage with respect to a port, was previously dismissed. (*See* Order Partially Granting Partial Motion to Dismiss, at 2-4, 12).

Respondent filed Respondent CMA CGM's Partial Motion to Dismiss ("MTD") on June 10, 2024. Among other things, Respondent argued that Complainant's Count I for violation of Section 41102(c) should be dismissed for lack of jurisdiction because Count I was essentially a breach of contract claim. (MTD, at 8-12). Respondent also argued that Count I should be dismissed because Complainant did not make any allegations related to Respondent's practices "relating to or connected with receiving, handling, storing, or delivering property" (*see* 46 U.S.C. § 41102(c)) which was traditionally read by the Commission to apply only to terminal and forwarding services. (MTD, at 12-15).

On December 20, 2024, the then-Presiding Officer, Chief Administrative Law Judge Erin M. Wirth, issued an Order Partially Granting Partial Motion to Dismiss (the "December 20 Order"). Among other things, Chief Judge Wirth dismissed Complainant's claim under Section 41104(a)(9) of the Shipping Act (Count IV of the Complaint). (December 20 Order, at 2-4). Chief Judge Wirth, however, rejected Respondent's argument regarding lack of jurisdiction, as well as Respondent's argument regarding "receiving, handling, storing, or delivering property." (December 20 Order, at 7-12).

This matter was reassigned to Administrative Law Judge Mary Apostolakos Hervey on May 27, 2025.

On May 26, 2026, Complainant filed its Opening Brief and Proposed Findings of Fact ("Initial Brief"), Appendix, and Complainant's Motion for Confidential Treatment of Designated

Information Contained in Complainant's Opening Brief and Appendix ("CMCT1"). On May 28, 2026, Judge Hervey issued an Order on Complainant's Motion for Confidential Treatment (the "May 28 Order") that denied CMCT1 as seeking to redact too much information. (*See generally* May 28 Order). The May 28 Order required Complainant to re-file the Initial Brief and Appendix with proper redactions. (*Id.*).

On June 10, 2026, Complainant re-filed its Opening Brief and Proposed Findings of Fact ("Opening Brief" and "CPFF"), along with a new Complainant's Motion for Confidential Treatment of Designated Information Contained in Complainant's Opening Brief and Appendix ("CMCT2").

On June 25, 2026, Respondent filed Respondent's Reply Brief ("Response"), Appendix, Respondent's Proposed Findings of Fact ("RPFF"), Respondent's Reply to Complainant's Proposed Findings of Fact ("RCPFF"), and Respondent's Motion for Confidential Treatment of Designated Information Contained in Respondent's Reply Brief, Appendix, Proposed Findings of Fact, and Reply to Complainant's Proposed Findings of Fact ("RMCT").

On July 7, 2026, Complainant's Reply to Respondent's Brief ("Reply"), and Complainant's Responses to Respondent's Proposed Findings of Fact ("CRPFF").

The parties' arguments will be discussed in-depth below. In general, however, Complainant broadly makes two arguments. First, Complainant argues that during the 2021-2022 contract period – which occurred while the Covid-19 Pandemic was ongoing and there was significant congestion at several ports – Respondent engaged in unfair shipping practices. In particular, Complainant alleges that Respondent did not honor its shipping contract, nor did it allocate space amongst shippers on a pro-rata basis. Instead, Complainant alleges that Respondent essentially forced shippers to pay higher rates and extra fees by not carrying cargo for shippers who did not agree to Respondent's demands. Complainant alleges that it was harmed by Respondent's unjust and unreasonable shipping practices because Respondent did not ship its cargo, and when Respondent did, it was because Complainant agreed to pay higher rates and extra fees. Complainant argues that Respondent's alleged conduct violated Sections 41102(c), 41104(a)(2), and 41104(a)(10) of the Shipping Act (Count I, III, and V of the Complaint, respectively). Second, Complainant argues Respondent violated Section 41102(c) by charging unreasonable detention fees when Complainant was unable to return its containers to the Union Pacific rail terminal in Denver from August 2022 through November 2022 due to heavy congestion at that terminal. Complainant seeks over \$34 million in reparations due to Respondent's alleged misconduct. (*See generally* Complaint).

Respondent raises several arguments in response to Complainant's allegations. To begin, Respondent renews two arguments made previously. First, Respondent argues that Complainant's claim is largely based on a breach of contract theory, which is outside the Commission's jurisdiction. Second, Respondent argues that Section 41102(c) should be understood to be limited only to terminal practices. Beyond that, Respondent argues that its policy during the relevant time was to allocate cargo space as equitably as possible, and its employees worked hard to make that happen. To the extent Complainant paid higher rates and fees, it did so voluntarily – even eagerly. And even to the extent Complainant did not ship cargo with Respondent, Complainant had contracts with several other carriers and NVOCCs, so any

costs Complainant occurred happened through Complainant's own lack of diligence. As for the detention charges, Respondent argues that Complainant's evidence consists of nothing but a few emails that show not only that there was congestion, but also show that Respondent's employees diligently worked to resolve the problem.

Below are my Findings of Fact, followed by my Analysis.

III. FINDINGS OF FACT ("FOF")

A. Background Facts

1. Complainant, which is an affiliate of Furniture Row, is a shipper. (See CPFF, ¶ 1; RCPFF, ¶ 1).
2. Respondent is a common carrier. (CPFF, ¶ 1; RCPFF, ¶ 2; Answer, at ¶ 4).
3. I take official notice of the fact that there was unprecedented congestion at many ports during the Covid-19 pandemic, and, in particular, the relevant time frame of spring 2021 through spring 2022. (46 C.F.R. § 502.226). In *Fact Finding Investigation No. 29 Final Report* (the "*Final Report 29*") (May 31, 2022), the Commission found that beginning in the fourth quarter of 2020, "[i]ncreased demand exposed existing problems in the international ocean supply chain, leading to extreme supply chain port and marine terminal congestion." (*Final Report 29*, at 11, 40). Respondent wrote in an Interrogatory Answer that there was port congestion during the pandemic that caused "delays in vessels entering the Ports of Los Angeles/Long Beach. Due to these vessel delays and increased demand during this period, equipment was in short supply in different ports/locations at different time periods." (APP0812). Several initial decisions from recent years refer to "unprecedented stress being placed on the supply chain" and resulting congestion during the relevant time period. (See *Hapag-Lloyd, A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c)*, Dkt. 21-09, 2022 WL 1239377, at *2 (ALJ. Apr. 22, 2022) (quotations omitted); *TZ SSE Buyer, LLC v. Yang Ming Marine Transp. Corp.*, Dkt. No. 24-10, 2025 WL 1083815, at *19-20 (ALJ March 24, 2025) (notice not to review April 24, 2025) (discussing evidence in the record of widespread congestion at ports); see also *TPG Pressure, Inc. v. Omni Logistics and Epic Freight Solutions, LLC*, Dkt. No. 22-31, 2024 WL 4226354, at *33 (ALJ Sept. 12, 2024) ("Thus, the evidence shows that congestion impacted shipping during this time and Respondents reasonably conveyed this to TPG.")).
4. The parties entered into Service Contract No. 20-2947 for the 2020-2021 service contract year. (RCPFF, ¶ 3; RPFF, ¶ 4; CRPFF, ¶ 1).
5. In an email from September 4, 2020, Respondent's employee proposed amended terms to the 2020-2021 service contract. (APP0359-APP0360).
6. There was an email exchange from September 4, 2020, through September 9, 2020, among Respondent's employees discussing Complainant's request to increase the minimum quantity commitment ("MQC") of the 2020-2021 service contract to 4,000 TEUs. From September 7, 2020, through September 9, 2020, some of Respondent's employees asked if Complainant would be able to seek liquidated damages if Respondent failed to ship 4,000 TEUs

before the end of the contract period. Another employee responded that Complainant would not, noting that the service contract provides that “the MQC will be reduced by the quantity of containers tendered but not carried on Carrier’s vessel” and that “[t]he reduction in MQC herein shall be the exclusive remedy available to Merchant for Carrier’s failure to provide space or to comply with Carrier service commitment as stated here.” (APP0361-APP0368).

7. The parties negotiated a service contract for the 2021-2022 period. They exchanged several emails from March 2, 2021, through March 22, 2021, negotiating terms such as price per route and quantity of containers per route. (RX0185-RX0194).

8. The parties entered into Service Contract No. 21-2947 for the March 19, 2021, through April 30, 2022, contract year (the “Relevant Contract”). (RCPFF, ¶ 5; RPFF, ¶¶ 3-4; CRPFF, ¶¶ 3-4; APP0094-APP0119²). Among other things, as originally agreed, Complainant agreed to provide, and Respondent agreed to ship, 4,000 twenty-foot equivalent units (“TEUs”) for the contract period. (APP0094-APP0113). The Relevant Contract provided container rates for shipping containers from various places of receipt, points of loading to points of destination, and points of delivery, which included inland destinations, such as Denver. (*Id.*). As initially agreed, the highest rate to ship a forty-foot container from Asia to the United States was \$6,006. (AP0115).³

9. The parties agree that as part of the Relevant Contract, the parties agreed to a weekly allocation of containers from certain points of origin, though Respondent argues that the weekly allocation is not binding or actually a part of the Relevant Contract (*but see* ¶¶ 21, 25, *infra*). (CPFF, ¶¶ 6-7; RCPFF, ¶¶ 6-7). Ports of origin include ports in China, Malaysia, Vietnam, and India. The parties agree that the weekly allocation from Vietnam was twenty-four TEUs, or twelve forty-foot equivalent units (“FEUs”), and ten FEUs from Malaysian ports. (CPFF, ¶ 7; RCPFF, ¶ 7).

10. The Relevant Contract was amended several times by June 9, 2021, to add and amend routes. (*See* APP0120-APP0222). Although the amendments to the Relevant Contract are blurry in places, it appears that the highest rate to ship a forty-foot container from Asia to the United States as of the June 9, 2021, amendment was approximately \$6,006. (AP0217).

11. On June 21, 2021, the Relevant Contract was amended. The rates for some transportation routes from Asia to the United States were increased. The highest rate to transport a forty-foot container was now \$13,351 on several routes. (APP0223-APP0249).

12. On June 25, 2021, Complainant’s principal emailed Respondent’s salesperson about moving numerous containers and asked about a rate. (APP0714). Respondent’s salesperson forwarded the request to her colleagues on the same day. (APP00713-APP0714). Respondent’s

² A few pages in Complainant’s Appendix are missing Bates numbers, including the document that should be APP0119. In my Findings of Facts, to the extent I cite a page that is missing a Bates number, I use the Bates number that would have been used in the sequence.

³ The parties did not designate the Relevant Contract or any of its amendments as confidential.

employees discussed availability and potential rates through July 12, 2021, including an amendment to the shipping contract. (APP0698-APP0713; RX0154-RX0158).

13. The shipping contract was amended July 5, 2021, and again July 7, 2021. Among other things, rates from some points of origin, including one in Vietnam, were increased from \$5,506 per forty-foot container to approximately \$11,506 (the numbers are blurry). (APP0250-APP0299; *see also* APP0244).

14. There is an email from July 22, 2021, from Respondent's employee to Complainant's employee. It states:

We are moving forward with PSS2/PSS3 for August 1 effective date. Each PSS is \$600 respectively, which totals \$1200. The volume demands continue to be at an all-time high and they are forecasted to only grow stronger as we begin to prepare for the holiday surge. Without PSS acceptance, it will be difficult for us to continue to consistently move volume for PKDC. We appreciate your understanding and continued partnership during these challenging times. Please let me know if you have any questions.

Upon your confirmation, I will send over the amendment to make the PSS effective for Aug 1.

(APP0689).

15. The contract was amended July 23, 2021, to add, among other things, a "peak season surcharge" ("PSS"). Though the Relevant Contract is blurry, it appears that the affected routes are from Malaysian ports to locations in Aurora, CO, Denver, CO, and Port Albany, MS. (APP0300-APP0324).

16. The Relevant Contract was amended on April 5, 2022, to reduce the number of TEUs to 1514. (APP0325-APP0349).

17. Respondent shipped 1,514 TEUs, or 757 FEUs, for Complainant during the Relevant Contract period. (RPFF, ¶ 8; CRPFF, ¶ 8). As the Relevant Contract initially provided that Respondent would carry 2,000 FEUs, Respondent carried about 38% of the FEUs that Respondent originally agreed to carry ($757 \div 2000 = 37.85$).

18. From March 16, 2022, through April 19, 2022, Complainant and Respondent negotiated a renewal of the service contract. (APP0350-APP0353). On May 1, 2022, the parties entered into a service contract for the 2022-2023 year. (RPFF ¶ 97; CRPFF, ¶ 97; REL_ECA 0000026526.0001 (native file)).

19. The relationship between APL and Respondent is unclear, but I take official notice of the fact that CMA CGM acquired APL's parent company in 2016.⁴ Accordingly, I will treat employees of APL as employees of Respondent.⁵

20. The record contains portions of service contracts between Complainant and various third-party carriers for a similar time-period as the Relevant Contract. (RX0067-RX0136).

B. Fact Findings Regarding Respondent's Policies and Priority Rankings

21. In Interrogatory No. 13, Complainant asked: "Explain in detail Your regulations and practices for allocating cargo space on any sailings of Your vessels for routes covered by the [Relevant Contract] including but not limited to allocating between cargo carried under shipping contracts and cargo" Respondent answered that it: "generally allocates space to its service contract customers by prorating the minimum volume of cargo committed under the relevant contract by the number of weeks in the terms of the contract to calculate a weekly space allocation." Respondent continued: "The general practice is to then further divide the total weekly space allocation for any given customer among specific trade lanes covered by the customer's contract." (APP0797).

22. In Interrogatory No. 22, Complainant asked: "Identify and explain, in detail, any policies, procedures, rules, or directives concerning parameters for denying requested space covered by a service contract for years 2019 to present and identify any changes in the policies, procedures, rules, or directives implemented identifying the change, reason and date of change." Respondent answered that its space allocation policy was described in answer to Interrogatory No. 13 (*see* FOF, ¶ 21). Respondent also answered that during the term of the service contract, it did not have a policy, procedure, or rule for denying space requested pursuant to a service contract. Respondent stated when it was not possible to provide all customers with their full allocation of space, "the default policy was to reduce the allocation of all customers on a pro-rata basis, subject to ad hoc adjustments based on the contractual commitments of customers and the performance of the customer and CMA CGM under the contracts of customers at the time of the sailing." (APP0799-APP0800).

23. In an email dated February 5, 2020, an employee of APL emailed other APL employees stating that there would be a monthly email including country-specific rankings for fixed accounts that will allow employees to "identify the good paying accounts and prioritize this within your free hand when space is tight." (APP0374-APP0376).

24. In an email chain between Respondent's employees dated June 8, 2020, through June 11, 2020, one employee, with the title "Vice President, Import Sales," wrote:

⁴ [CMA CGM | CMA CGM to acquire NOL](#) (last visited September 8, 2026); *see also* [CMA CGM | APL INTEGRATION: APL regains new momentum within CMA CGM Group, and strengthens Singapore's role on the global maritime scene](#) (last visited September 8, 2026).

⁵ Respondent attached a link to an article that is not available as of September 8, 2026, to support its assertion that APL was operationally separate from CMA CGM. (*See* RCPFF, at 46, n.5).

PSS must be prioritized over SeaPriority as it applies to all volume booked, from teu no. 1. PSS is a premium to allow continuous and / or increased space release during peak time vs average support. SEAPRIORITY can be sold on top of PSS to provide 100% loading guarantee on all/or specific bookings.

VIP BCO = for those top accounts reluctant to pay any Pss for their regular volume, SEAPRIORITY is a way to sell a premium on selective bookings, or volume exceeding average support.

(APP0514-APP0518) (SeaPriority will be abbreviated “SPGo” or “SPGO”).

25. In an Interrogatory Answer, Respondent wrote that the “Customer Allocation Management” (“CAM”) process “is simply a tool for attempting to plan for efficient utilization of cargo space. Customers’ contractual volume commitment is divided by the number of weeks covered by their contracts with” Respondent, “yielding a weekly customer service allocation (‘CSA’). The CSA is then divided among ports on the service(s) utilized together, equal the SCA.” Respondent continued that “Booking in excess of a customer’s CAM were identified by the local office or agent and were generally rejected in 2021-22 due to the high demand for vessel space.” (APP0811).

26. The record has a document dated November 2020, entitled: “LISA CAM, Customer Service Allocation, Transpacific Process.” (APP0382-APP0399). Among other things, it shows that a “rank filter is mandatory.” (APP0385). Ranks include “elite,” “BCO high paying” for “BCOs paying PSS,” “BCO Low Paying” for “No PSS,” and an additional VIP category for one particular customer. (APP0397; RCPFF, ¶ 19).

27. In an email chain from November 30, 2020, through December 2, 2020, amongst Respondent’s employees, one employee asked what clients will want in a post-Covid world. In response, another employee wrote that that all customers hope Respondent will “get back to covering their allocation on weekly basis without outrageous PSS charges, and equipment shortages.” In addition, they hope Respondent will: “assist more on chassis issues, so they are not bearing the cost of demurrage/detention. They also want to see CMA better prioritiz[ing] container in LA moving on the rail.” (APP0378-APP0381).

28. There is an email chain between Respondent’s employees from May 12, 2021, through May 21, 2021, where Respondent’s employees discuss which bookings to cancel on a vessel scheduled to travel from Vietnam to the United States. On May 21, 2021, one of Respondent’s employees stated: “I need an immediate improvement of Vietnam release versus CAM.” The email continued that Vietnam is the “NUMBER ONE origin in all the complaints from the IS teams when we look at booking releases vs CAM[,]” and “When you have small [allocations], it is a bloodbath, & meanwhile you are still releasing above CAM for some transactional cargo. . . .” (APP0497-APP0507).

29. There is an email between Respondent’s employees dated May 27, 2021, wherein one of Respondent’s employees states that ranking sequences were changed, showing different VIP levels. (APP0480-APP0481).

30. An employee of Respondent wrote on June 12, 2021: “In line with below for PSS / SeaPriority . . . SeaPriority will protect from roll. PSS will for sure be taken into account when doing cuts but in now way [*sic*] can be sold as protection for roll over.” (APP0514). In response, also on June 12, 2021, another employee wrote that: “[t]his week is a little early to get a full read of the market, that being said I’m hearing between \$200-\$400, at present. The reoccurring theme is that clients expect a PSS but they want to know what allocation they get in return for this[]” and “My suggestion is that we agree on a Amount to push, when the client agrees we agree on an allocation, and anything above that allocation must have SPGO to get on board.” (APP0513-APP0514).

31. In an email chain from August 23, 2022, through August 24, 2022, between Respondent’s employees, the first email in the chain states: “We noticed that the equipment priority list has not been updated for quite a while and feel that it needs to be updated with the latest approach, particularly as we now have accounts which are now paying PSS.” The email continues: “I have attached a file which we compared to the index of contracts that we have and adjusted the rankings according to what we think is more appropriate. Are you able to work with the equipment team to update their priority rankings?” An email in the chain from August 24, 2023, states: “When we lose the PSS, we will need [to] adjust back those accounts so will come back to you on it.” (APP0415-APP0419; *see also* APP0684-APP0688).

32. In an email between Respondent’s employees dated September 25, 2023, one employee wrote: “Take note that our PSS campaign is effectively over. I have attached an update of the [C]hina equipment priority list . . . do flag out your accounts which we also need to adjust their equipment priority ranking how that we have pretty much removed all the PSS.” (APP0414-APP0415; *see also* APP0684).

33. There is an email chain from October 16, 2023, through October 19, 2023, between Respondent’s employees. In the first email in the chain, Respondent’s employee states: “With the removal of PSS can we also downgrade these accounts to VIP1? We have done it for the CIF accounts and need to look at the same for FOB as we seem to have issue with equipment release right now given the overflow.” (APP0406-APP0414; *see also* APP0675-APP0683).

34. The record has an email chain amongst Respondent employees dated December 4, 2023, through December 7, 2023, with the subject line: “China equipment priority list.” The first email in the chain asks: “Can you send us the latest equipment priority ranking list by customer?” Another email December 4, 2023, suggests that “we start to further clean this. . . .” An email from December 5, 2023, states that “the priority list did work during the equipment shortage.” Another December 5, 2023, email states that “most other carriers release booking with the view that equipment is automatically available for that booking. For us, we have another additional level of booking control which is the EIR release process.” Another email states: “The EIR is the ticket to pickup equipment in depot and gate in.” The last email in the chain states in the body: “Worked on EIR existing list, . . . Assume we need to start from scratch . . . e.g. many LTA do not deserve their status anymore, . . . Priority 1 should mean: equipment MUST be released even if customer is coming at last minute.” (APP0400-APP0406; *see also* APP0668-APP0675).

35. The record has an email chain internal to Respondent's employees from December 9, 2023, through December 13, 2023, in which the employees discuss revamping the equipment priority lists. Among other things, one of Respondent's employees identified a rankings system that has been in place in 2022, which shows six priority levels, ranging from "no priority," which is a customer without a CSA, to VVIP, which includes "elite" customers. (APP0660-APP0668).

36. Respondent produced a spreadsheet showing that Complainant did not meet its MQC during the Relevant Contract period, and comments that: "During pandemic => PKDC was not a VIP customer + impacted by lockdowns." (CMA139634).

C. Email Correspondence With and Regarding Complainant

37. There is an email chain between Furniture Row employees and third parties from March 23, 2021, through March 24, 2021, that is marked confidential, but, in short, discusses a booking that was cancelled because the booking was not approved by Complainant. (RX0052-RX0057).

38. There is an email chain dated April 6, 2021, through April 7, 2021, between Respondent's employees. In the first email of April 6, 2021, one employee wrote: "Could you please ensure to release booking to PKDC as per enclosed CAM[?]" On April 7, 2021, another employee responded: "I did hear from PKDC again this morning advising that we still rejected their bookings ex Vietnam." The employee continued: "We need to know why bookings aren't being released as LISA CAM is now updated and this should not be the same message I receive day after day from the customer advising they can't get any bookings from CMA." (APP0526-APP0527).

39. On April 15, 2021, Complainant sent an email to Respondent requesting FEU allocations by port. (APP0373).

40. In an internal email chain between Respondent's employees from April 15, 2021, through April 22, 2021, Respondent's employees discuss allocating FEU allocations by port and by destination. In an email dated April 21, 2021, Respondent's employee wrote: "Also, 95% of their volume will be moving to DEN due to all of the backlog they have. This might even out later with more to New Albany, but we will see." (APP0369-APP0373; *see also* APP0508 ("Initially it will be more like 95% to Aurora. I suspect that this will change after a couple of months as we get caught up on backlogged shipments."))).

41. In an email chain between Complainant's employee and an NVOCC from April 25, 2021, and April 28, 2021, the NVOCC informed Complainant that its shipper cancelled premium bookings, to which Complainant's employee responded by asking which bookings. (RX0026-RX0030; *see also* RX0031-RX0033).

42. In an email from June 17, 2021, Complainant's employee requested room to ship 38 containers from Maylasia to the United States, and indicates that: "We realize this will take a premium to move" Respondent's employee wrote on June 18, 2021, that: "We can accept these, but we would need to remove somebody else in order to make this happen. The cost per container to do this would be \$14,000" (APP0696-APP0697; RX0228-RX0230).

43. There is an email chain from August 9, 2021, through August 10, 2021, between Respondent's employee and Complainant's employee, with the heading: 'Extra Space Offer//Vietnam//PKDC.' In an email of August 9, 2021, Respondent's employee offered 20 FEUs, though SeaPriority Go was required. Complainant's employee responded within minutes accepting the offer and stating: "If there are other options with Sea Priority or even with a premium fee like we did in Malaysia, we could sure use some help." On August 10, 2021, Respondent's employee called and offered additional TEUs of space. (APP0691-APP0693).

44. On August 11, 2021, Complainant's employee emailed Respondent's employee and said: "It is increasingly frustrating to not be able to get out allocations and the space we need. At what price can we get the more space that we really need?" Respondent's employee asked what the key pain points were, to which Complainant's employee stated in another email dated August 11, 2022, Vietnam, Xingang, Malaysia, Indonesia and Ningbo. (APP0659; APP0715).

45. Although the content of the emails are largely marked confidential, from August 10, 2021, through August 25, 2021, Complainant's employee discussed new booking procedures with Furniture Row employees and other third-party employees. (RX0001-RX0003; RX0034-RX0048; RX0058-RX0063; RX0216-RX0218).

46. As part of the email exchange described in FOF ¶ 45, in an email exchange between an employee of Furniture Row and an agent dated August 20, 2021, the Furniture Row employee approves of a Sea Priority fee stating that in this market, "it's not a deal breaker." (RX0058).

47. There is an email chain from August 18, 2021, through August 24, 2021. In the first email of August 18, 2021, Complainant's employee asks for four containers at contract rate to be shipped plus an additional six to be shipped if available. Respondent's employees approved of booking four containers at the contract rate. The shipment, however, was ultimately wrongly booked to Aurora, NC, instead of Aurora, CO. (RX0143-RX0150; RX0159-RX0166).

48. There is an email chain between Complainant's employee and Complainant's shipper dated September 1, 2021. Complainant's shipper forwarded an email from Respondent that stated that "We regret to inform you that you have already exhausted your weekly TEU allocation. Due to which no more booking could be accommodated during the week of the requested ETD or in an upcoming week." Complainant's employee responded stating "please confirm can we proceed booking UNDER SEA PRIORITY with CMA? If yes we will resubmit booking request with CMA." In a subsequent email, Complainant's employee wrote "proceed booking UNDER SEA PRIORITY with CMA." (RX0021-RX0025).

49. There is an email chain from September 8, 2021, through September 10, 2021, between an employee of Complainant and an employee of Respondent. Complainant's employee asked Respondent to carry containers from Xiamen to the United States, to which Respondent's employee stated that PKDC does not have any weekly allocation out of Xiamen. On September 10, 2021, Respondent's employee confirmed that headquarters indicates that Respondent was unable to accept the containers for the time being. (APP0623-APP0625).

50. There is an email chain on September 9, 2021, between Complainant's principal and Respondent's salesperson under the heading "Extra Space Proposal," about transportation from Nansha/Yanitan/Xiamen. Respondent's salesperson stated: "I know we just declined some Xiamen bookings," and offered space to Complainant for "SPGO on top of our contract rates." SPGO was \$1800. (APP1166-APP1167).
51. On September 15, 2021, Respondent's salesperson emailed Complainant's principal in an email with the heading: "Yangtse Extra Space Offer PKDC." In the email, Respondent's salesperson offered 15 FEUs of space for the contract rate plus SPGO. (APP0690).
52. In another email on September 15, 2021, Complainant was informed that it exceeded its weekly booking allocation. (RX0212-RX0213).
53. There is an email exchange from October 21, 2021, through November 8, 2021, between Complainant's employee and Respondent's employee. In the lead email, although Complainant's employee acknowledged that Complainant did not have a weekly allocation from Xiamen to the United States, Complainant's employee asked Respondent to transport the container. In an internal discussion among Respondent's employees, one of Respondent's employees commented on November 2, 2021, that Respondent hasn't "exactly released up to LISA CAM this year, so any extra help would be beneficial." On November 5, 2021, another employee responded that because Complainant cannot "swap equipment to a 20ST, there won't be any chance to release this booking due to equipment shortage." (APP0617-APP0623).
54. There is an email exchange between Respondent's salesperson and a representative of Complaint dated November 15, 2021, Respondent's salesperson offered to take 24 TEUs from Vietnam at regular contracted rates, and 12 more at contract rates with SPGO. (RX0204).
55. In an email of December 8, 2021, Respondent's salesperson emailed Complainant's principal and offered space on a vessel out of Yanitan though noting that all cargo must have SPGO. (APP0694-APP0695).
56. There is an email chain from December 16, 2021, through December 17, 2021, between Respondent's employees. In short, in emails of December 16, 2021, and December 17, 2021, the employees discuss a situation where there is more cargo than can be shipped on two vessels, including cargo from Complainant. One of Respondent's employees wrote on December 16, 2021, asking for support for Complainant and others to "enable our volume catch up before AMS cutoff." In response, another employee wrote on December 17, 2021, asking if these were VIP customers, "[a]s per my understanding TP only accept above exception into VIP pool" (APP0524-APP0525; *see also* APP0520-APP0521 ("According the company policy, only VIP4 who paid SPGO could be added into VIP POOL"))).
57. There is email correspondence between Complainant's principal, employees of Furniture Row, and other third-parties from April 22, 2022, that is marked confidential. In general, it shows that containers were booked to be shipped in August on Respondent's vessel at substantially higher rates than the contract rate, contrary to Furniture Row's policy. (RX0017-RX0020).

58. In August 2022 and September 2022, there are emails between Respondent's employees showing Complainant demanding lower rates. (RX0139-RX0142).

59. There are two email chains from mid-April 2022 to mid-May 2022 in the record. In the first one described below, all of the emails in the chain have the heading "Extra Volume Request." All emails in the second email chain described have the heading "Shanghai Shipments." Due to the parallel chronologically, I organized them topically for clarity.

1. Extra Volume Request

60. There is an email chain with all email dated April 19, 2022. In the first email in the chain, one employee for Complainant asks another to procure space to ship 24 containers total, at least 16 of which were being transported from China to the United States. Complainant's principal forwarded the request to Respondent's salesperson in an email with the same date, and the heading: "Extra Volume Request." Respondent's salesperson responded offering a vessel. (APP0475-APP0479; *see also* APP0553-APP0555; APP0611-APP0616).

61. There is an email chain with emails from April 20, 2022, through April 24, 2022, continuing with the heading "Extra Volume Request." In the first email in the chain, one employee for Complainant tells another that it is unable to use the ship referenced in the previous paragraph (FOF, ¶ 60) due to a trucker shortage, and asks for another ship to transport an additional 19 containers. Complainant's principal forwarded the same to Respondent on April 20, 2022, and followed up on April 21, 2022. Respondent's salesperson responded on April 21, 2022, and offered another vessel. Apparently, an agent of Complainant sent an email to Respondent on April 24, 2022, stating that shipment was booked, but asked for the space to be released. (APP0461-APP0475; *see also* APP0550-APP0551).

62. On April 25, 2022, Respondent's employee responded to the email chain in the previous paragraph (FOF, ¶ 61), keeping the "Extra Volume Request" heading, stating that the booking was released, and asked Complainant to "prepare for EIR application tomorrow." The same day, Complainant's employee sent a note to its agent noting that because truckers are lacking at the Ningbo port, Complainant's employee asked for an EIR application to ship. (APP0457-APP0459; *see also* APP0541-APP0542).

63. On April 26, 2022, continuing the heading "Extra Volume Request," Complainant's employee emailed Respondent's employees asking for support, stating that the shipper has "bookings with SPGO and added 19" containers, but could not pick up empty containers, and asked Respondent to prioritize empty equipment for Respondent. The following day, Complainant's employee sent another email to Respondent stating that the shipper was still unable to get empty containers, that the cut-off for the vessel had passed, and asked for a guarantee of equipment. Respondent's employee responded on April 28, 2022, stating that Respondent had approval to re-route the containers to another vessel. (APP0446-APP0450; *see also* APP0531-APP0534; APP0582-APP0586).

64. On May 4, 2022, Complainant's agent emailed employees of both Complainant and Respondent, under the heading "Extra Volume Request," stating that it was unable to get an EIR

for the vessel and there is no empty 40HC container. Complainant's employee, the same day, sent an email to Respondent asking for support. On May 5, 2022, Respondent's employee emailed stating that bookings were released, which Complainant's agent confirmed on May 6, 2022. Complainant's employee then asked the agent to prioritize finding containers for the SPGO bookings as Complainant missed two vessels due to inability to get equipment. (APP0440-APP0445; *see also* APP0530-APP0531; APP0576-APP0582).

65. In an email dated May 10, 2022, a third-party, presumably Complainant's shipper, emailed Complainant's employee, using the heading "Extra Volume Request," stating that she called Respondent's employee, who said "vessel spaces were over released and no equipment for us again. She suggested us to change vessel again. . . ." The shipper's employee also expressed frustration about the released cancellations. Complainant's employee forwarded the request to Respondent the next day. Respondent's employee responded on May 11, 2022, indicating it was checking, but noted that there was a big equipment shortage. Complainant's employee asked on May 12, 2022, if there was a way to prioritize equipment. (APP0433-APP0437; *see also* APP0569-APP0574).

66. On May 13, 2022, under the heading "Extra Volume Request," Respondent's employee emailed Complainant and Complainant's shipper with a new vessel. Complainant's agent responded a short time later stating that cut-off time is at midnight. Complainant's employee asked for another vessel on May 13, 2022. (APP0431-APP0433; *see also* APP0567-APP0569).

67. On May 15, 2022, under the heading "Extra Volume Request," Complainant's employee asked Respondent's employee for a new vessel. Respondent's salesperson wrote back the following day that there is an equipment shortage in Ningbo, and asked to clarify what Complainant wanted shipped. On May 17, 2022, Complainant's employee renewed the request for shipment of 19 containers from Ningbo to the United States. Respondent's employee forwarded the request to Respondent's other employees the same day. Another employee for Respondent wrote back stating that the system shows mass cancellations. (APP0427-APP0430; *see also* APP0563-APP0568).

68. On May 20, 2022, Respondent's salesperson, under the heading "Extra Volume Request," wrote to other employees of Respondent: "This is getting kind of crazy and PKDC is losing their patience with us. We keep cancelling, asking them to rebook, cancelling again, asking them to rebook. We really need to get this under control." (APP0422-APP0423; *see also* APP0559-APP0600). On May 23, 2022, an employee of Respondent wrote that: "As per quota given today," Respondent's partner "could only cover VIP3 for 40HC." (APP0420; *see also* APP0556-APP0557).

2. Shanghai Shipments

69. There is an email chain from April 22, 2022, through April 27, 2022. In the first email of the chain, Complainant's employee asks for the next available vessel and ship date from the Shanghai port for 7 containers. Respondent's employee responded on April 26, 2022, with information about a vessel. On April 27, 2022, Complainant's employee asked to ship 12 additional containers on the same vessel. (APP0651-APP0655).

70. After numerous emails from April 27, 2022, through May 6, 2022, Complainant's employee sent Respondent's employee an email on May 6, 2022, stating that the vessel identified in the email chain in the previous paragraph (FOF, ¶ 69) would not work, and that another vessel was needed for delivery to the ultimate destination. Complainant's employee asked for additional vessels. (APP0640-APP0650)

71. In an email dated May 9, 2022, Respondent's employee identified a vessel in response to Complainant's request in the previous paragraph (FOF, ¶ 70). Complainant's employee responded on May 11, 2022, confirming booking and asked to guarantee equipment. Respondent's employee replied May 12, 2022, stating that the "equipment situation is bad at the moment." The booking was cancelled on May 19, 2022, due to lack of equipment. (APP0631-APP0638).

72. In an email chain from May 19, 2021, through May 23, 2021, Respondent's employee informed Complainant's employee to rebook on another vessel. Complainant rebooked the shipment, but on May 23, 2022, Complainant's shipper emailed Respondent stating that it was unable to get an empty container until now. (APP0626-APP0631).

D. Email Correspondence Related to Detention

73. There is an email chain from March 15, 2022, through March 31, 2022, between Respondents' employees. In it, they discuss a service contract for another customer. While discussing the number of free days, one of Respondent's employees states that the other customer needs a certain number of free days as "[t]here are still too many variables right now" preventing the return of containers within less time, including "inconsistent vessel schedules, train bunching, delays with rail unloading, etc[.]" (APP1170-APP1171; *see also* APP1172 ("This is largely a result of vessel bunching and inconsistent rail service causing too many containers arriving into DEN and HOU at the same time.")).

74. There is an email chain from June 21, 2022, through July 20, 2022. (APP0716-APP0731). The email chain involved, in relevant part, storage fees for a container. In an email of July 19, 2022, Respondent's employee informed her colleagues that "there have been ongoing shortages of chassis for quite some time," that the customer has to discuss waiver with the rail directly, and that Respondent "can only assist with storage accrued on units that are CH NON MNT." (APP0718-APP0719). Another one of Respondent's employees responded the same date stating that Respondent is not charging "IRED in Denver for the time being[.]" (APP0717-APP0718).

75. In a September 7, 2022, email, Complainant's trucker informed Respondent that the latter has run out of reservations. (APP0736).

76. In a September 14, 2022, email, Complainant's trucker informed Respondent that the former has more than 20 empties to terminate today, and asked if the plan was to increase reservations in Denver, or to take them to another rail line. (APP0737).

77. In another September 14, 2022, email, Complainant's trucker states that it is attempting to return Respondent's empties to Union Pacific Railroad ("UPRR"), but that the rail line is not accepting empties due to Respondent not having any reserved space. (APP0741-APP0742).

78. There are screenshots with UPRR's logo indicating a lack of reservations. There are screenshots dated September 14, 2022, and September 21, 2022. (APP0738-APP0740).

79. In a September 23, 2022, email, Complainant's trucker informed Respondent that the latter is "out of reserved space at the UPRR and we have 30 plus empties [t]hat need to terminate today and that the trucker has a driver standing by." The trucker also forwarded the same message to Furniture Row. (APP0734-APP0735).

80. There is a September 30, 2022, email chain where Complainant's trucker tells Respondent that the latter has run out of reservations for the UPRR, that there are over 25 to terminate, and that asks if the containers can go to another rail line. (APP0749-APP0750). The trucker followed up later in the day stating that it was in the process of rotating loads in and empties out when it ran into the usual brick wall of no reservations at UPRR. (APP0747-APP0749). On Saturday, October 1, 2022, Respondent's employee responded with suggestions for finding return space. (APP0744-APP0747).

81. The email chain from the prior paragraph (FOF, ¶ 80) continued to October 3, 2022. Respondent's employee asked the trucker if it was able to get the containers, to which the trucker responded that it managed to get some over the weekend, but reservations dried up again. Furniture Row's employee emailed Respondent's employee and the trucker's employee asking how to proceed, and that Complainant and its trucker cannot be responsible for storage. Respondent's employee responded October 3, 2022, that it should have reservations for ingate. (APP00751-APP0758).

82. There is an email chain from October 13, 2022, through October 14, 2022. In an email of October 13, 2022, Complainant's trucker wrote Respondent that there are no reservations to return empties to UPRR, and asked for increased reservations or an open gate with another rail line. Respondent's employee responded the same day stating that the lane is at capacity and additional reservations are not available. Furniture Row's employee asked for confirmation that Complainant will not incur additional fees. The next morning, Complainant's trucker indicated reservations still were unavailable and asked if another railway could accept. Respondent's employee responded stating that it told another railroad to accept. In another email of October 14, 2022, Respondent agreed to cancel some charges. (APP0759-APP0775).

83. There is an email chain from November 10, 2022, through November 11, 2022, where Complainant's trucker indicates that it is unable to get reservations for Respondent's empties. On November 11, 2022, Respondent's employee indicated she requested more slots. Furniture Row's employee wrote on November 11, 2022, that Complainant will not be responsible for any charges that may accrue due to being unable to return empties. (APP0776-APP0777; RX0231-RX0236).

84. Complainant submitted a spreadsheet that it represents shows detention charges (the "Detention Spreadsheet"). (See Grafton Decl. Ex. E). The Detention Spreadsheet identifies invoice numbers, container numbers, bills of lading, dates for which detention was charged, and the amount of detention per container. In all, the Detention Spreadsheet shows \$879,260 in

detention charges. The earliest date for which detention was charged was August 14, 2022, and November 21, 2022, was the last date for which detention was charged. All 374 invoices were from that approximately 14-week period. All containers were destined to be returned to UPRR in Denver. (Grafton Decl., Ex. E). Based on the amounts identified in Exhibit E, Respondent charged \$185/day for detention for days 1-4 after free time expired, and \$220/per day from days 5 onward. Respondent issued the first detention invoice in mid-September 2022, the majority of the detention invoices in October 2022, another substantial portion of invoices in November 2022, and the last detention invoices in early December 2022. (Grafton Decl., Ex. E).

85. Respondent submitted a declaration from a vice president of finance stating that Complainant was slower than other comparable customers at returning containers to the Denver rail terminal in the August 2022-November 2022 timeframe. (RX0258-RX0259).

E. Grafton Declaration

86. Complainant submits the Declaration of Lori Grafton (“Grafton Declaration” or “Grafton Decl.”), which is signed and dated May 26, 2026. It attaches five exhibits. One of the exhibits, Exhibit E, the Detention Spreadsheet, is discussed in ¶ 84 above. The others are discussed below.

87. Exhibit A to the Grafton Declaration is a spreadsheet that shows all charges for all containers that moved under the Relevant Contract. It shows an average basic freight charge of \$5,243.82. It shows, among other things, that Respondent charged Complainant \$1,099,525.08 in PSS and Sea Priority (“SPGo”) fees over and above the contract rates. The Grafton Declaration does not indicate when the invoices were sent, nor do they indicate when payments were made. The last export dated was April 29, 2022. Of the containers, 445 were exported from Vietnam to various ports in the United States, and 104 were shipped from Malaysia. (See Grafton Decl., Ex. A).

88. Exhibit B to the Grafton Declaration is a spreadsheet that shows all charges for all containers that moved via NVOCCs along the same routes as covered under the Relevant Contract. It shows that there were 1,556 containers in all for total freight charges of \$24,513,538.46. The average price Complainant paid for alternative ocean transportation was \$15,754.20 per container. Among other things, there were 585 containers shipped from Vietnam and 503 from Malaysia. (See Grafton Decl., Ex. B). The Grafton Declaration indicates that Exhibit B was accurately prepared from invoices from NVOCCs. (Grafton Decl., ¶ 6).

89. Exhibit C to the Grafton Declaration is a spreadsheet that shows all charges for all containers that moved via NVOCCs on Respondent’s vessels along the same routes during the Relevant Contract period. Ports of loading include ports most of the same ports in China, Malaysia, Vietnam, and India as identified in the weekly allocations (see FOF, ¶ 9). The three most common final points were Denver, CO, Aurora, CO, and Memphis, TN. It shows that there were 1,228 containers in all for total freight charges of \$21,630,196. (See Grafton Decl., Ex. C).

90. Exhibit D to the Grafton Declaration is a spreadsheet that shows all charges for inland transportation for containers that moved via NVOCC and that were later transported over land. It shows 322 invoices for \$3,121,416.15. (See Grafton Decl., Ex. D). The Grafton Declaration

indicates that Exhibit D was accurately prepared from invoices from NVOCCs. (Grafton Decl., ¶ 13).

IV. ANALYSIS

A. Jurisdiction

Respondent first argues that the Commission lacks jurisdiction to hear Complainant's claims under Section 41102(c) regarding Respondent's shipping practices, Section 41104(a)(2), and Section 41104(a)(1), respectively, Counts I, III, and V. In Count I, Respondent allegedly violated Section 41102(c) by acting unreasonably in relation to the Relevant Contract. (*See* Complaint, at 10). In Count III, Respondent allegedly violated Section 41104(a)(2), the "Filed Rate Doctrine," by failing to abide by the rates in the Relevant Contract. (*See* Complaint, at 10). And, in Count V, Respondent allegedly violated Section 41104(a)(10) by failing to deal or negotiate in good faith in relation to the contract. (*See* Complaint, at 11). Respondent argues that these Counts are basically all breach of contract claims, which are outside the Commission's jurisdiction. (Response, at 4-10; *see also* 46 U.S.C. § 40502(f) ("Unless the parties agree otherwise, the exclusive remedy for a breach of a service contract is an action in an appropriate court.")).

Respondent acknowledges that Chief Judge Wirth previously rejected a similar argument in the December 20 Order, relying on *Cargo One, Inc. v. COSCO Container Lines Co., Ltd.*, Dkt. No. 99-24, 2000 WL 1648961 (FMC Oct. 31, 2000). (*See generally* December 20 Order, at 7-10 ("The Commission therefore has jurisdiction and has an obligation to determine whether an entity, here CMA, has violated the Shipping Act. This is the case even when the allegations may constitute both breach of contract claims and claims that the entity violated the Shipping Act.")).

Respondent, however, points out that the U.S. Court of Appeals for the District of Columbia (the "D.C. Circuit") questioned in passing whether the Commission's interpretation of Section 40502(f) in *Cargo One* "comports with the terms of the statute[,] and argues that this is an invitation to revisit the central holding of *Cargo One*. (Response, at 5-10 (citing *MSC Mediterranean Shipping Co. v. Fed. Mar. Comm'n*, 141 F.4th 222, 233 (D.C. Cir., 2025) ("*MSC II*")))). In brief, *Cargo One* lays out the Commission's test regarding whether a claim is essentially one for breach of contract, and is therefore outside the Commission's jurisdiction, or whether a claim alleges a Shipping Act violation, and is thus within the Commission's jurisdiction. (*See generally* *Cargo One*, 2000 WL 1648961).⁶

⁶ The Commission wrote:

We believe the more appropriate test is whether a complainant's allegations are inherently a breach of contract claim, or whether they also involve elements peculiar to the Shipping Act. We find that as a general matter, allegations essentially comprising contract law claims should be dismissed unless the party alleging the violation successfully rebuts the presumption that the claim is no more than a simple contract breach claim. In contrast, where the alleged violation raises issues beyond contractual obligations, the Commission will likely presume,

I do not agree that the D.C. Circuit’s comment warrants me re-examining *Cargo One*. The December 20 Order already decided the question of jurisdiction in this case. (December 20 Order, at 7-10).⁷ The law-of-the-case doctrine instructs that I should not revisit this issue barring clear error or a change in the law. (*MSC Industries, Inc. v. Mediterranean Shipping Co. S.A.*, Dkt. No. 21-05, 8 F.M.C.2d 17, 28, 2024 WL 95383 (FMC, Jan. 3, 2024) (“*MSC I*”) (citation omitted) (“[T]he law-of-the-case doctrine reflects the rule that courts should not reopen questions decided earlier in the case absent clear error or an intervening change of law[.]”). Although the D.C. Circuit questioned whether *Cargo One*’s test was consistent with the Shipping Act, the D.C. Circuit noted that the parties accepted that the *Cargo One* test was applicable, and then applied it. (*MSC II*, 141 F.4th at 233). This is not a change in intervening law. Also, I reviewed the December 20 Order and, for the reasons articulated in the December 20 Order, find no clear error. Therefore, I find no reason to re-visit the jurisdictional issue that was already decided.

B. Burden of Proof

To prevail in a proceeding brought to enforce the Shipping Act, “a complainant has the burden of proving by a preponderance of the evidence that the respondent violated the Act.” (*Port Elizabeth Terminal & Warehouse Corp. v. The Port Authority of New York and New Jersey*, Dkt. No. 17-07, 1 F.M.C.2d 264, 278, 2019 WL 1376529 (ALJ Mar. 25, 2019) (settled on appeal, 1 F.M.C.2d 502 (FMC Dec. 19, 2019)); *see also* 5 U.S.C. § 556(d)).

Under the preponderance standard, a complainant must show that its allegations are more probable than not. (*Crocus Investments, LLC v. Marine Transport Logistics, Inc.*, Dkt. No. 15-04, 3 F.M.C.2d 110, 112-13, 2021 WL 3732849, at *3-4 (FMC Aug. 18, 2021) (Order Affirming Initial Decision on Remand)). It is appropriate to draw inferences from certain facts when direct evidence is not available, and circumstantial evidence alone may even be sufficient; however, such findings may not be drawn from mere speculation. (*Waterman Steamship Corp. v. Gen. Foundries, Inc.*, Dkt. No. 93-15, 1993 WL 13975538, at *13 (ALJ Dec. 9, 1993), adopted in relevant part, 1994 WL 279898 (FMC June 13, 1994)).

C. Count I, Section 41102(c) – Alleged Unreasonable Shipping Practices

Complainant alleges that Respondent violated 46 U.S.C. § 41102(c) by unfair shipping practices. That statute provides that: “[a] common carrier, marine terminal operator, or ocean transportation intermediary, acting alone or in conjunction with another person, directly or indirectly, may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling storing or delivering property.” (46

unless the facts as proven do not support such a claim, that the matter is appropriately before the agency.

(*Cargo One*, 2000 WL 1648961, at *12 (footnote omitted)).

⁷ The December 20 Order only expressly decided the issue of jurisdiction as it related to Complainant’s Count I, that is, Complainant’s Section 41102(c) claim. (December 20 Order, at 7-10). But the rationale in the December 20 Order extends to Complainant’s Count III and Count V also.

U.S.C. § 41102(c)). By regulation, the Commission identified the following five elements of a claim under Section 41102(c):

- (a) the respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary; (b) the claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis; (c) the practice or regulation relates to or is connected with receiving, handling, storing or delivering property; (d) the practice or regulation is unjust or unreasonable; and (e) the practice proximately caused the claimed loss.

(46 C.F.R. § 545.4).

The central element of a Section 41102(c) claim is whether the practice was unjust and unreasonable. The benchmark test for whether a practice is reasonable that “the practice must be otherwise lawful, not excessive, and reasonably related, fit and appropriate to the ends in view.” (*W. Gulf Mar. Ass’n v. Port of Hous. Auth.*, 21 F.M.C. 244, 248, 18 S.R.R. 783, 790 (FMC 1978), *aff’d without opinion sub nom. W. Gulf Mar. Ass’n. v. FMC*, 610 F.2d 1001 (D.C. Cir. 1979), cert. denied, 449 U.S. 822 (1980)).

Complainant alleges that Respondent violated Section 41102(c) in two ways. First, allegedly, Respondent did not follow Commission precedent and pro-rate space among customers to whom Respondent had contractual commitments. Instead, Respondent favored higher paying, “priority” customers, giving them space on vessels and access to equipment. In other words, Complainant alleges that when vessel space and equipment were in high demand and short supply, Respondent basically auctioned off space and equipment to the highest bidders. Further, in this environment of high demand and short supply, Respondent allegedly coerced Complainant into agreeing to pay additional fees and higher rates. Second, Respondent allegedly violated the incentive principle by making Complainant responsible for detention fees. Respondent’s argument regarding detention fees will be discussed in its own section below. Here, I address Complainant’s arguments regarding Respondent’s alleged prioritization and coercion.

One of the main purposes of the Shipping Act is to “establish a nondiscriminatory regulatory process for the common carriage of goods by water[.]” (46 U.S.C. § 40101(1)). Consistent with that purpose, the Commission has repeatedly stated that: “Where the demand for space exceeds the supply, the law is clear: a common carrier must equitably prorate its available space among shippers.” (*Banana Distributors, Inc. v. Grace Line*, 5 F.M.B. 615, 620 (FMB 1959) (*aff’d sub nom Grace Line Inc. v. Fed. Mar. Bd.*, 280 F.2d 790 (2d Cir. 1960)); *see also* Fact Finding Investigation No. 23, 1998 WL 940278, at *1 (FMC Sept. 21, 1998) (“While that decision was rendered under the Shipping Act, 1916, nothing contained in the 1984 Act, or in subsequent case law, would appear to alter this obligation of common carriers subject to regulation by the Commission to ‘equitably prorate’ available space.”)). “If carriers offer service contracts they should have reasonably available adequate space to meet the needs of all shippers similarly situated who attempt to access the contract. If a carrier is booked 100 percent with contract cargo, barring other reasonable accommodations, it may have to charter other space or pro-rate its capacity among all its service contract shippers.” (*California Shipping Line, Inc. v.*

Yangming Marine Transport Corp., Dkt. No. 88-15, 1990 WL 427466, at *32 (FMC Oct. 19, 1990)).

In *Boston Wool Trade Assoc. v. Merchants Miners Trans. Co.*, Docket No. 11, 1 U.S.S.B. 32, 35 (U.S. Shipping Board Dec. 13, 1921), the U.S. Shipping Board considered whether a “practice” limiting space (an embargo) “was unjust or unreasonable.” (*Id.*, at 35). The complainant asserted that “the embargoes were placed by the carrier in order to increase its revenue and were not justified by traffic conditions then prevalent[.]” (*Id.*, at 33). The Board, however, found “ample evidence of record with respect to the severely congested condition of traffic[.]” (*Id.*, at 33-34). Moreover, testimony showed that “the purpose of this practice was to insure a degree of service to all shippers,” and that “space in the vessels of the respondent was apportioned as equitably as possible among the shippers who had previously notified the forwarding agent that they had wool to move in consequence of which all shippers were able to have some of their traffic handled on each sailing.” (*Id.*, at 34).

In its Interrogatory Answers, Respondent articulated a policy that is largely consistent with this line of cases. In describing the way Respondent allocates space, it stated that it generally allocates space to its service contract customers by prorating the minimum volume of cargo committed under the relevant contract by the number of weeks in the terms of the contract to calculate a weekly space allocation, and then further divides the total weekly space allocation for any given customer among specific trade lanes covered by the customer’s contract. (FOF, ¶ 21). Respondent also stated that during the term of the service contract, it did not have a policy, procedure, or rule for denying requested space covered by a service contract. (FOF, ¶ 22). Respondent stated when it was not possible to provide all customers with their full allocation of space, “the default policy was to reduce the allocation of all customers on a pro-rata basis, subject to ad hoc adjustments based on the contractual commitments of customers and the performance of the customer and CMA CGM under the contracts of customers at the time of the sailing.” (FOF, ¶ 22). This policy is largely consistent with the cases discussed above, which generally require a pro-rata allocation.

1. Cargo Space Prioritization

For the reasons discussed below, I find that it is more likely that not that Respondent did not allocate space on a pro-rata basis, despite what it contends. Instead, I find that it is more likely that not that Respondent had a policy of prioritizing cargo space allocations in favor of customers who paid higher rates and fees during the pandemic.

As early as summer 2020, one of Respondent’s employees wrote that “PSS must be prioritized over SeaPriority as it applies to all volume booked, from teu no. 1. PSS is a premium to allow continuous and / or increased space release during peak time vs average support.” (FOF, ¶ 24). That employee continued: “SEAPRIORITY can be sold on top of PSS to provide 100% loading guarantee on all/or specific bookings.” (*Id.*). In November 2020, another employee wrote that in a post-Covid world customers will want Respondent to cover “their allocation on weekly basis without outrageous PSS charge. . . .” (FOF, ¶ 27). The record also contains a “customer service allocation” PowerPoint from November 2020 that shows that customers were ranked, in part, based on whether customers were elite, VIPs, or utilized PSS. (FOF, ¶ 26). In June 2021, an employee wrote: “In line with below for PSS / SeaPriority . . . SeaPriority will protect from roll.

PSS will for sure be taken into account when doing cuts but in now way [*sic*] can be sold as protection for roll over.” (FOF, ¶ 30). In response, also on June 12, 2021, another employee wrote that: “[t]his week is a little early to get a full read of the market, that being said I’m hearing between \$200-\$400, at present. The reoccurring theme is that clients expect a PSS but they want to know what allocation they get in return for this[]” and “My suggestion is that we agree on a Amount to push, when the client agrees we agree on an allocation, and anything above that allocation must have SPGO to get on board.” (FOF, ¶ 30). Further, several emails suggest that cargo could get bumped off a ship unless premiums were paid. (FOF, ¶¶ 23-24, 30, 42).

Complainant was affected negatively by this prioritization policy. There is no dispute that Complainant did not receive its allocation of containers on Respondent’s vessels; the number of TEUs was reduced on the Relevant Contract to about 38% of its original allocation. (FOF, ¶ 17). Complainant’s principal complained that Complainant was getting frustrated because it could not get its allocations. (FOF, ¶ 44). In December 2021, during the Relevant Contract period, when Respondent’s salesperson asked another one of Respondent’s employees if anything could be done to help Complainant because Complainant was not receiving its allocations, Respondent’s other employee asked if Complainant was a VIP, because if not, Complainant would not get an allocation. (FOF, ¶ 56).

Eventually, Complainant’s principal resorted to amending the Relevant Contract to agree to pay substantially higher rates in order to ship its cargo on some routes. (FOF, ¶¶ 11, 13). Similarly, Complainant apparently, through affiliates at Furniture Row, capitulated to Respondent’s expectation that SPGo would be paid. (FOF, ¶ 46). Indeed, Respondent’s salesperson outright told Complainant’s principal that Complainant would not be able to get space on board without paying PSS. In an email, Respondent’s salesperson wrote: “The volume demands continue to be at an all-time high and they are forecasted to only grow stronger as we begin to prepare for the holiday surge. Without PSS acceptance, it will be difficult for us to continue to consistently move volume for PKDC.” (FOF, ¶ 24). In other words, Respondent’s salesperson all but said that Respondent would not carry Complainant’s cargo – despite Respondent’s obligation to pro-rate cargo space – unless Complainant agreed to pay additional fees.

I acknowledge that many of the emails in the record speak of “extra volume” requests, and thus contemplate shipments in excess of the contract amounts. (*See, e.g.*, FOF, ¶¶ 50-51, 60-68). Nevertheless, the fact that Complainant agreed to amend the Relevant Contract to increase rates along popular routes (*see* FOF, ¶¶ 11, 13) substantially and agree to additional fees (FOF, ¶¶ 15, 46) strongly suggests that Complainant was unable to get its containers on Respondent’s ships by simply paying the original contract rates. Therefore, I am satisfied that Complainant has shown that it was harmed by Respondent’s policy of prioritizing customers who paid higher fees.

To defend itself, Respondent points to one example email from November 2021 where it provided Complainant with the contracted space at contracted rates to assert that it carried cargo at the contract rate within the weekly projection when tendered. (Response, at 22; *see also* FOF, ¶ 54). This is not persuasive. The cargo was being shipped from Vietnam. (FOF, ¶ 54). A few months earlier, in June 2021, the Relevant Contract was amended to increase rates sharply for cargo out of Vietnam. (FOF, ¶ 13).

Respondent also argues that Complainant is not a small shipper with no leverage, but is itself a large company, and had service contracts with several carriers and NVOCCs. (Response, at 23-24; *see also* FOF, ¶ 20). The record also includes evidence that Complainant bargained vigorously with Respondent before entering the Relevant Contract. (FOF, ¶ 7). While I take Respondent's point that this case is not a "David versus Goliath" situation (Response, at 23), I do not find this argument to be persuasive, either. Complainant's size does not change the fact that Respondent had unreasonable policies in place. Nor does it negate the fact that Respondent's practices caused Complainant harm by preferring some customers over others, and not pro-rating cargo space (or, as discussed below, equipment). There is no question that during the Covid-19 pandemic, with congestion affecting logistics in many places, carriers had tremendous leverage – at least some, like Respondent, took unjust advantage of the situation.

Respondent asserts that Complainant had problems managing bookings, leading to Complainant cancelling a large number of its own bookings. (Response, at 27-28; FOF, ¶ 37). Further, several bookings were outright erroneous. (Response, at 27-28; FOF, ¶ 47). Complainant had to revise its own cargo booking practice in August 2021, several months into the Relevant Contract period. (FOF, ¶ 45). Moreover, there is evidence this new policy still was not being followed by Complainant or its agents near the end of the Relevant Contract period. (Response, at 27; FOF, ¶ 57). These arguments are not persuasive. The fact that Complainant revised its own cargo booking practice is not surprising given the unprecedented congestion everyone was facing. Indeed, Respondent, too, had email exchanges about adjusting its practices during the same general time period. (FOF, ¶¶ 28-30). Nor is it surprising that some number of booking errors happened. Complainant shipped over 2,000 containers during the Relevant Contract period. (FOF, ¶¶ 17; 88). This apparently included over 1,200 containers that could have gone on Respondent's vessels but did not because of Respondent's unreasonable practices. (FOF, ¶ 89). Given the number of container bookings involved, as well as the dynamic circumstances, mistakes were bound to happen. And if Respondent can only point to a handful of errors out of well-over 1,000 containers, Complainant's booking error rate is actually very low.

Collectively, these facts show that despite what Respondent wrote in its Interrogatory Answers regarding cargo space allocation, the evidence shows that it is more likely than not that Respondent prioritized space allocation during the Relevant Contract period by whether the customer was willing to pay higher rates and additional fees, which caused Complainant harm. Accordingly, I find that the first (regulated entity), second (practice), fourth (unreasonableness), and fifth (causation) elements of a Section 41102(c) have been met regarding Respondent's policy for space allocation.

Finally, I also find that the third element of a Section 41102(c) claim – the practice or regulation relates to or is connected with receiving, handling, storing or delivering property – is also satisfied. As with the issue of jurisdiction, discussed above, Respondent argued this issue previously, and Chief Judge Wirth rejected this argument in the December 20 Order. (*See* December 20 Order, at 10-12). Respondent argues I should revisit this decision. Respondent does not argue that the law has changed, but instead argues that the cases Chief Judge Wirth cited in the December 20 Order are distinguishable. (Response, at 14). I disagree. I reviewed Chief Judge Wirth's December 20 Order, as well as the cases cited therein. I find that Chief Judge Wirth

appropriately analyzed the cases cited therein. Because this case involves Respondent's practices regarding fees and cargo space, I am satisfied that the third element of a Section 41102(c) claim is satisfied. (*See also MSRF, Inc. v. HMM Co., Ltd.*, Dkt. No. 22-20, 7 F.M.C.2d 85, 105-06, 2023 WL 8242695 (ALJ Nov. 22, 2023) (notice not to review, 8 F.M.C.2d 353 (FMC May 16, 2024) ("There is as well good reason to conclude that space allocation is within the ambit of 'receiving, handling, storing or delivering of property.'"))).

2. Equipment Prioritization

Reviewing the evidence, I find that it is more likely than not that, in practice, Respondent did not pro-rate equipment equitably, either.

Regarding equipment, several emails from 2023 strongly suggest that Respondent had a prioritization system in place since at least 2022. In an email chain from December 2023, one of Respondent's employees identified a rankings system that has been in place in 2022, which shows six priority levels, ranging from "no priority," which is a customer without a service contract, to VVIP, which includes "elite" customers. (FOF, ¶ 35). An email from December 5, 2023, states that "the priority list did work during the equipment shortage." (FOF, ¶ 34). Another December 5, 2023, email states that "most other carriers release booking with the view that equipment is automatically available for that booking. For us, we have another additional level of booking control which is the EIR release process." (FOF, ¶ 34). Another email states: "The EIR is the ticket to pickup equipment in depot and gate in." (FOF, ¶ 34). The last email in the chain states in the body: "Worked on EIR existing list, . . . Assume we need to start from scratch . . . e.g. many LTA do not deserve their status anymore, . . . Priority 1 should mean: equipment MUST be released even if customer is coming at last minute." (FOF, ¶ 34). In other words, since 2022, there was a system where customers classified with higher priority must get equipment before others.

In an email chain from August 23, 2022, through August 24, 2022, between Respondent's employees, the first email in the chain states: "We noticed that the equipment priority list has not been updated for quite a while and feel that it needs to be updated with the latest approach, particularly as we now have accounts which are now paying PSS." The email continues: "I have attached a file which we compared to the index of contracts that we have and adjusted the rankings according to what we think is more appropriate. Are you able to work with the equipment team to update their priority rankings?" An email in the chain from August 24, 2023, states: "When we lose the PSS, we will need [to] adjust back those accounts so will come back to you on it." (FOF, ¶ 31). It appears more likely than not that the priority system was tied to whether a customer paid PSS. In an email between Respondent's employees dated September 25, 2023, one employee wrote: "Take note that our PSS campaign is effectively over. I have attached an update of the [C]hina equipment priority list . . . do flag out your accounts which we also need to adjust their equipment priority ranking how that we have pretty much removed all the PSS." (FOF, ¶ 32).

Email traffic suggests that VIP rankings were not new to Respondent in 2022, and that they existed since at least May 2021. There is an email between Respondent's employees dated May 27, 2021, wherein one of Respondent's employees states that ranking sequences were changed, showing different VIP levels. (FOF, ¶ 29).

The evidence shows that Complainant was affected by not having an equipment priority. In an email exchange from the fall of 2021, during the Relevant Contract period, Respondent's salesperson tried to help Complainant acquire space on a ship from Xiamen, to which one of Respondent's other employees stated that Complainant cannot "swap equipment to a 20ST, there won't be any chance to release this booking due to equipment shortage." (FOF, ¶ 53). In an email exchange starting April 26, 2022, close to the end of the Relevant Contract period, Complainant repeatedly tried to acquire space on one of Respondent's vessels from Ningbo, but was unable to get containers to move its cargo. (FOF, ¶¶ 60-68). In another email chain that began April 22, 2022, Complainant tried to acquire space on a vessel from Shanghai, but again was unable to get equipment. (FOF, ¶¶ 69-72). Although none of these emails tie Complainant's inability to obtain equipment due to the equipment priority, Respondent produced a spreadsheet showing that Complainant did not meet its MQC during the Relevant Contract period, and comments that: "During pandemic => PKDC was not a VIP customer + impacted by lockdowns." (FOF, ¶ 36).

Respondent argues that much of the evidence Complainant relies on is from 2020 or 2023. (Response, at 19). I agree that some evidence Complainant cites is from before or after the Relevant Contract period. (*See, e.g.*, FOF, ¶¶ 23-27, 31-36). Taken together, the cited emails show a consistent pattern of activity. Even if Respondent's official policy was to pro-rate cargo space or equipment (Response, at 19), as discussed, that policy was undermined by actual practice.⁸

Respondent also argues that some deviation from the pro-rata allocation method is permissible, as real-world circumstances often interfere with a simple pro-rata allocation. (Response, at 24-25). This argument is undoubtedly correct – some deviation from a pro-rata allocation is permissible. That, however, is not what the evidence shows in this case. Instead, as discussed above, the evidence shows that access to equipment was tied to a customer's willingness to pay for it.

In sum, I find that Complainant has carried its burden on the first element of a Section 41102(c) claim (common carrier), the second and fourth elements (unreasonable practice), the third element (handling property – *see* discussion above), as well as the fifth element (causation of harm). Therefore, Complainant has carried its burden of demonstration that Respondent violated Section 41102(c) of the Shipping Act through its equipment prioritization practices during the Relevant Contract period.

3. Conclusion

I find that Complainant has carried its burden of showing that Respondent violated Section 41102(c) by means of its unreasonable practices of preferring certain customers for

⁸ Both parties make arguments about how other customers fared under Respondent's policies, *e.g.*, the parties argue about whether MQCs were fulfilled (or not) for other customers. (*See, e.g.*, Opening Brief, at 33; Response, at 20). I generally do not find such evidence to be probative. There could be several reasons another customer did or did not meet its MQC. What is clear from the main text, however, is that there is substantial evidence of Respondent preferring customers who paid higher rates and extra fees, and that Complainant demonstrated it was directly affected negatively by this practice.

cargo space and equipment. These practices caused Complainant harm. Complainant's claim under Count I is **GRANTED**. I will discuss the issue of reparations below.

D. Count III, Section 41104(a)(2) – Alleged Violation of Filed Rate Doctrine

Section 41104(a)(2) provides: “A common carrier, either alone or in conjunction with any other person, directly or indirectly, shall not” provide service in the liner trade that is “not in accordance with the rates, charges, classifications, rules, and practices contained in a tariff published or a service contract entered into under chapter 405 of this title”

Section 41104(a)(2) is the Shipping Act's codification of the so-called “filed rate doctrine.” The Supreme Court, long ago, discussed the concept behind the filed rate doctrine in the context of the Interstate Commerce Act of 1887.

In order to render rates definite and certain, and to prevent discrimination and other abuses, the statute required the filing and publishing of tariffs specifying the rates adopted by the carrier, and made these the legal rates; that is, those which must be charged to all shippers alike. Any deviation from the published rate was declared a criminal offense, and also a civil wrong giving rise to an action for damages by the injured shipper. Although the act thus created a legal rate, it did not abrogate, but expressly affirmed, the common-law duty to charge no more than a reasonable rate, and left upon the carrier the burden of conforming its charges to that standard. In other words, the legal rate was not made by the statute a lawful rate—it was lawful only if it was reasonable. Under section 6, the shipper was bound to pay the legal rate; but, if he could show that it was unreasonable, he might recover reparation.

(*Arizona Grocery Co. v. Atchison, T.&S.F. Ry. Co.*, 284 U.S. 370, 384 (1932) (internal citations omitted)).

Recent decisions by the Commission and its ALJs carry these concepts forward – the carrier must charge the tariff or otherwise agreed-upon rate so long as the rate is reasonable; but if the rate is unreasonable, it is not enforceable. For example, in *SeaFair USA, LLC v. Sterling Container Line Ltd.*, Dkt. No. 22-34, 2024 WL 1741926, 8 F.M.C.2d 268, 279 (ALJ Apr. 15, 2024) (notice not to review May 16, 2024), the ALJ wrote that “a carrier must charge the rates duly filed under law in the carrier's tariffs and if those rates are reasonable under the applicable law the carrier must charge them notwithstanding” virtually any “defense that shippers could raise against the carriers' demands for payment of the duly filed tariff rates.” In *Bakerly, LLC v. SeaFrigo USA, Inc.*, Dkt. No. 22-17, 8 F.M.C.2d 48, 86, 2024 WL 95381 (ALJ Jan. 3, 2024) (*affirmed*, 8 F.M.C.2d 611 (FMC Oct. 30, 2024)), the ALJ wrote:

So, generally the agreed to rate (whether filed in tariffs or negotiated in a service contract or NRA) must be charged – not more and not less. However, that filed or negotiated rate may not be enforceable if it violates the Shipping Act, for example, if it is an unreasonable practice under section 41102(c).

(*Bakerly*, 8 F.M.C.2d at 86). The Commission itself stated: “The filed rate doctrine does not function as a carte blanche to justify whatever action a carrier believes is appropriate; the provisions of the Act relating to unreasonable discrimination still apply.” (*Total Fitness Equipment, Inc. v. Worldlink Logistics, Inc.*, Dkt No. 1831(F), 1998 WL 940255, at *4-5 (FMC Dec. 10, 1998) (citations to the record omitted)). In other words, if the tariff rate, or contract rate, is itself unreasonable, it is unenforceable.

Here, much of Complainant’s claim relies on the same basic set of allegations as discussed above. Complainant’s Section 41104(a)(2) claim alleges Respondent unreasonably preferred higher-paying customers instead of pro-rating equipment and space among customers. (Opening Brief, at 40-41).

As discussed above, I find Respondent’s conduct to have been unreasonable. Respondent preferred higher-paying customers. Moreover, although Complainant eventually agreed to pay higher rates and fees during the Relevant Contract period than Complainant agreed to pay originally, Complainant functionally had little choice. Respondent’s salesperson wrote: “Without PSS acceptance, it will be difficult for us to continue to consistently move volume for PKDC.” (FOF, ¶ 14). Respondent is a common carrier that provides services to the general public. (*See generally* 46 U.S.C. § 40102(7)(1); *see also Banana Distributors*, 5 F.M.B. at 622 (“Grace is a common carrier and as such owes a duty to the shipping public to serve similarly situated shippers alike.”); *Kobel v. Hapag-Lloyd, A.G.*, Dkt. No. 10-06, 2013 WL 9808671, *9 (FMC, May 26, 2015) (“In a common carriage context, a common carrier, MTO, or OTI provides services to the general public.”)). An entity that serves the general public, or even a privately-contracted shipper, should not be using its leverage to extract additional fees. Accordingly, I find Respondent’s use of its leverage to require Complainant to agree to pay higher rates and fees to be unreasonable. Likewise, it was unreasonable for Respondent to charge higher rates and fees to Complainant despite Complainant’s acquiescence to the same. Complainant’s claim under Count III is **GRANTED**.

E. Count V, Section 41104(a)(10) – Alleged Unreasonable Refusal to Deal or Negotiate

Complainant alleges that the Respondent violated § 41104(a)(10). During the Relevant Contract period, that statute provided: “A common carrier, either alone or in conjunction with any other person, directly or indirectly, may not . . . unreasonably refuse to deal or negotiate[.]” The statute was amended by Ocean Shipping Reform Act of 2022 (“OSRA 22”) to add the following after “negotiate”: “, including with respect to vessel space accommodations provided by an ocean common carrier[.]” (*See* OSRA 22 (Pub. L. 117-146), Section 7(a)(1)(D)). OSRA 22 was effective June 16, 2022, after the Relevant Contract already expired (FOF, ¶ 8), and thus the amended language is not directly applicable to this case. After Section 41104(a)(10) was amended by OSRA 22, however, the Commission engaged in rulemaking regarding the amended Section 41104(a)(10). The rulemaking is helpful to understanding how Section 41104(a)(10) applies.

Historically, the rule in Section 41104(a)(10) was focused on allowing shippers to secure space on vessels. (*MSRF*, 7 F.M.C.2d at 113). In performing rulemaking in the aftermath of OSRA 22, the Commission commented that the essence of a claim for unreasonable refusal to deal or negotiate is the “imposition by a common carrier of an unreasonable impediment to a shipper’s access to common carriage.” (*Definition of Unreasonable Refusal to Deal or Negotiate with Respect to Vessel Space Accommodations Provided by an Ocean Common Carrier* (“*SNPRM*”), 88 FED. REG., 38789, 38791). In other words, a common carrier cannot shut out a shipper unless it does so in relation to legitimate transportation-related factors. (*New Orleans Stevedoring Co. v. Bd. of Comm’rs of the Port of New Orleans*, Dkt. No. 00-11, 29 S.R.R. 1066, 2002 WL 33836158, *5 (FMC Jun. 28, 2002) (*aff’d sub nom. New Orleans Stevedoring Co. v. Fed. Mar. Comm’n*, 80 Fed. App’x 681 (D.C. Cir. 2003) (internal citations omitted)).

To establish a violation of section 41104(a)(10), the complainant “must establish that (a) [r]espondents are common carriers, (b) [r]espondents refused to deal or negotiate, and (c) such refusal was unreasonable.” (*OJ Commerce, LLC v. Hamburg Sudamerikanische Dampfschiffahrts-Gesellschaft A/S & Co. KG & Hamburg Sud N. Am., Inc.*, Dkt. No. 21-11, 2023 WL 3969857, at *22 (ALJ Jun. 7, 2023) (“*OJ Commerce I*”). The first element is easily met here. As for the second element, for there to be a refusal to deal or negotiate, there must be: “an affirmative act by a party to deal or engage in negotiations with the common carrier.” (*OJ Commerce I*, 2023 WL 3969857, at *29 (quoting *Definition of Unreasonable Refusal To Deal or Negotiate With Respect to Vessel Space Accommodations Provided by an Ocean Common Carrier* (“*NPRM*”), 87 FED. REG. 57674, 57677)). As for the third element, the post-OSRA 22 rule states that unreasonable means “ocean common carrier conduct that unduly restricts the ability of shippers to meaningfully access ocean carriage services from that ocean common carrier.” (46 C.F.R. § 542.1(b)). “Refusals to deal or negotiate are factually driven and determined on a case-by-case basis.” (*Canaveral Port Authority – Possible Violations of Section 10(b)(10), Unreasonable Refusal to Deal or Negotiate*, Dkt. No. 02-02, 2003 WL 723336, at *18 (FMC Feb. 24, 2003)).

Commission guidance has indicated that there does not necessarily need to be a clear sequence of negotiations for the second and third elements of a Section 41104(a)(10) claim to be satisfied. The Commission has commented that “whether a common carrier has unreasonably refused cargo or vessel space accommodations is not a simple binary question of determining what prevented the shippers’ cargo from actually being loaded aboard an outbound vessel.” It continued: “That question may be bound up with an unbroken series of interactions and communications that cannot always be neatly separated in the negotiation stage (covered by 46 U.S.C. 41104(a)(10)) and the execution stage (covered by U.S.C. 41104(a)(3)) of the parties’ interactions.” (*SNPRM*, 88 FED. REG. 38789, 38795-38796). Another ALJ has read this to say that attempts to book shipments could potentially be considered attempts at negotiation under Section 41104(a)(10). (*MSRF*, 7 F.M.C.2d at 115).

Turning to the parties’ arguments here, Complainant argues that Respondent failed or refused to negotiate by preferring higher paying customers, and limiting access to its vessels. (Opening Brief, at 38). In effect, it was partially “shut out.” (Reply, at 20). In response, Respondent argues that Complainant clearly was not “shut out” – Respondent shipped 757 FEUs for Complainant, offered Complainant extra space, and the parties entered into a shipping contract for the following year. (Response, at 30-31; FOF, ¶¶ 17-18, 43, 51, 60-68).

Based on the facts here, I am satisfied that Respondent's acts constitute a violation of Section 41104(a)(10). There is evidence that Complainant was unable to book space on Respondent's vessels, and that Respondent gave priority to higher-paying cargo. There is evidence that Complainant was able to transport its containers on Respondent's vessels by booking a container through NVOCCs and paying significantly higher rates. (FOF, ¶ 89). And while Complainant was able to ship some cargo on Respondent's vessels, it was only about 38% of the contracted space. (FOF, ¶ 17). In short, I am satisfied that Respondent engaged in an unreasonable refusal to deal or negotiate when it declined to accept Complainant's cargo in favor of better-paying cargo. Complainant's Count V, violation of Section 41104(a)(10), is **GRANTED**.

F. Count II, Section 41102(c) – Alleged Unreasonable Detention Charges

As discussed above, Complainant argued Respondent violated Section 41102(c) in two ways. One of the ways, regarding Respondent's shipping practices, was discussed above. The other, that Respondent charged Complainant unjust and unreasonable detention, is discussed here.

The Commission promulgated an interpretive rule applying "to practices and regulations relating to demurrage and detention for containerized cargo." (46 C.F.R. § 545.5(b)). In general, "[i]n assessing the reasonableness of demurrage and detention practices and regulations, the Commission will consider the extent to which demurrage and detention are serving their intended primary purposes as financial incentives to promote freight fluidity." (46 C.F.R. § 545.5(c)(1)). As for detention charges, the Commission's interpretive rule provides that: "Absent extenuating circumstances, practices and regulations that provide for imposition of detention when it does not serve its incentivizing purposes, such as when empty containers cannot be returned, are likely to be found unreasonable." (46 C.F.R. § 545.5(c)(2)(ii)). The rule continues, stating that:

(d) *Demurrage and detention policies.* The Commission may consider in the reasonableness analysis the existence, accessibility, content, and clarity of policies implementing demurrage and detention practices and regulations, including dispute resolution policies and practices and regulations regarding demurrage and detention billing. In assessing dispute resolution policies, the Commission may further consider the extent to which they contain information about points of contact, timeframes, and corroboration requirements.

(e) *Transparent terminology.* The Commission may consider in the reasonableness analysis the extent to which regulated entities have clearly defined the terms used in demurrage and detention practices and regulations, the accessibility of definitions, and the extent to which the definitions differ from how the terms are used in other contexts.

(46 C.F.R. § 545.5(d)&(e); *see also Bakerly*, 8 F.M.C. 2d at 88-89). The Final Rule promulgating the interpretive rule states that each case would be decided on its own facts. (*Interpretive Rule on Demurrage and Detention Under the Shipping Act* ("Interpretive Rule") 85 FED. REG. 29638, 29642).

The Commission recently reiterated its rule regarding the incentive principle. Demurrage and detention should not be viewed as a source of revenue by the carriers. (*Samsung Electronics Am., Inc. v. SM Line Corp.*, Dkt. No. 23-01, 2026 WL 2427726, at *12 (FMC Aug. 13, 2026) (stating that the carrier “had an unreasonable practice of billing SEA for demurrage and detention without paying sufficient attention to promoting freight fluidity by assessing the cause of the delay, reflecting that SM Line’s billing was done at least in part on the improper basis of revenue generation.”)). Nevertheless, complainants must show that any improper practice by the carrier caused the complainant to incur inappropriate detention charges. (*Samsung*, 2026 WL 2427726, at *12-13). This is done on a container-by-container basis. (*Id.*, at *12 (“But that practice was the proximate cause of damage to SEA only where the record contained sufficient evidence of that damage, based on a reasonable level of container-specific analysis.”)). The parties both agree that such a container-by-container causation analysis is required. (Response, at 32-33; Reply, at 20).

In this case, Complainant produced the Detention Spreadsheet that shows a number of detention charges Respondent imposed during the period of August 14, 2022, through November 21, 2022. Complainant also submitted email traffic from a trucker to Respondent indicating that the trucker was unable to return containers to UPRR’s Denver terminal due to congestion. I find that for the dates such email traffic exists, Complainant carried its burden of proving a Section 41102(c) violation. In particular, those dates are: September 7, 14, 21, 23, and 30, 2022, October 1, 3, and 13-14, 2022, and November 10-11, 2022. (FOF, ¶¶ 75-83).

There is no question Respondent is a carrier, satisfying the first element of Section 41102(c). As discussed above, fees related to cargo handling satisfy the third element of Section 41102(c). The fact that Respondent charged detention on approximately 600 occasions over the course of about three months (*see* Appendix A) when terminal space was unavailable shows both that Respondent engaged in a practice, and that the practice was unreasonable, satisfying the second and fourth elements of a Section 41102(c) claim. Finally, obviously, the detention charge caused damage to the extent Complainant paid the fees, satisfying the fifth element of a Section 41102(c) claim. Therefore, at least as to September 7, 14, 21, 23, and 30, 2022, October 1, 3, and 13-14, 2022, and November 10-11, 2022, Complainant established that Respondent violated Section 41102(c) due to unjust and unreasonable detention charges.

Respondent argues that email correspondence from a motor carrier alone is insufficient to support Complainant’s detention-related claim. (Response, at 34). I disagree. I have previously found that when the record contains evidence showing that a container could not be returned due to congestion, it was inappropriate for the carrier to charge detention because no amount of detention could incentivize the return of the container. (*See TZ SSE Buyer, LLC v. Yang Ming Marine Transp. Corp.*, Dkt No. 24-10, 2025 WL 1083815, at *22 (ALJ Mar. 24, 2025) (notice not to review, 2025 WL 1255551 (FMC Apr. 24, 2025) (“The email chain provides evidence that the drayage provider was unable to pick up the container due to a chassis shortage and congestion.”); *Access One Transport, Inc. v. COSCO Shipping Lines Co., Ltd.*, Dkt. No. 24-13, 2025 WL 1675843, at *18 (ALJ Jun. 6, 2025) (notice not to review, 2025 WL 1937529 (FMC July 8, 2025) (“Where the record contains a Blue Cargo screenshot showing no appointment to return a container on a given day, I find that to be strong evidence in favor of Complainant’s claim that the detention charges were unjust and unreasonable because they do not promote freight fluidity”); *Simple Forwarding, Inc. v. China United Lines Ltd.*, Dkt. No. 2010(F),

2025 WL 1723588, at *11 (ALJ, Feb. 6, 2025) (notice not to review, 2025 WL 843331 (FMC, Mar. 11, 2025) (“The record contains numerous pages of screenshots for CUL returns from October 14, 2021, through October 19, 2021, all of which show no appointments available for return of the container until October 19, 2021.”)). My decisions were not novel. The D.C. Circuit affirmed the Commission’s decision that detention charges were improper when a container could not be returned because a port was closed for the holiday weekend. (*See Evergreen Shipping Agency (Am.), Corp. v. Fed. Mar. Comm’n*, 174 F.4th 169 (D.C. Cir. 2026) (“Under these circumstances, it was not arbitrary and capricious for FMC to conclude that the disputed fees did not serve either their ‘primary purpose[] as financial incentives to promote freight fluidity,’ or any secondary ‘compensatory aspect[.]’”) (internal citations omitted)).

Respondent argues that several of the emails show that after Respondent was alerted to the problem of lack of reservations at the rail terminal, its employees indicated that they would work on securing additional space. (RCPFF, at ¶ 52; FOF, ¶¶ 80, 83). There is no evidence that additional space was, in fact, secured. The closest piece of evidence was an email saying Respondent instructed another railroad to take the containers. (FOF, ¶ 82). But it does not necessarily follow that the other railroad was actually able to take the containers. Accordingly, despite the representations of Respondent’s employees, I find it is still more likely that not that Complainant was unable to return containers on September 7, 14, 21, 23, and 30, 2022, October 1, 3, and 13-14, 2022, and November 10-11, 2022.

Respondent also argues that it performed an analysis that shows that Complainant was simply slow in returning its containers. (RPFF, ¶¶ 89, 91; *see also* FOF, ¶ 85). That does not change the fact that there is evidence in the record that Complainant was unable to return containers on some days, and was charged detention anyway.

I note that the charges at issue all post-date OSRA 22’s effective date, thus it is likely that Respondent’s detention invoices would have contained information regarding how to dispute detention charges. (*See* 46 U.S.C. § 41104(d) (identifying requirements for a detention invoice, including the carrier’s contact information for purposes of asking about or disputing a charge)). The fact that the invoices would have had contact information for disputing a charge, however, does not insulate Respondent from Complainant’s claim; Respondent’s employees were made aware of problems returning containers on certain days, but, with one exception (FOF, ¶ 82), nevertheless Respondent charged detention on those days for the containers at issue.

Complainant argues that there is sufficient evidence to show that all detention charges during the relevant time-period were unreasonable. For support, in addition to the various emails from the trucker, Complainant notes that Respondent’s internal email traffic recognized there were problems with the Denver rail terminal as early as March 2022. (Reply, at 20; FOF, ¶ 73). Complainant also cites *Hapag-Lloyd, A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c)*, Dkt. 21-09, 2022 WL 1239377 (ALJ Apr. 22, 2022) (settlement approved on appeal). (Opening Brief, at 36-38; Reply, at 20-21). But *Hapag-Lloyd* actually undermines Complainant’s argument. In *Hapag-Lloyd*, Chief Judge Wirth was unable to make any factual findings where specific evidence did not exist. (*Hapag-Lloyd*, 2022 WL 1239377, at *27). For example, even where there was evidence that a container could not be returned on June 11 and June 14, the ALJ made no findings regarding June 12 and June 13. (*Id.*, at *27). Moreover, only after Chief Judge Wirth identified specific evidence that a container

could not be returned on a given day, such as in the form of a screenshot or email, was she able to conclude that the container could not be returned. (*Id.*, at *30).

Several decisions are in accord with the analysis in *Hapag-Lloyd*. In *Access One*, for example, there was ample evidence of widespread congestion at the terminals, but reparations were awarded only for those containers for which the complainant could show the lack of available terminal space. (*Access One*, 2025 WL 1675843, at *17, *22; *see also TZ SSE*, 2025 WL 1083815, at *21 (“Or, to paraphrase Complainant, nothing in the record demonstrates that LGI or Supply Source were unable to avoid demurrage charges for container no. TGBU7110345 through no fault of their own.”). Conversely, it is possible that at least some of the containers were not returned to the terminal timely due to Complainant’s own lack of diligence. As noted above, Respondent submitted a declaration that suggests precisely the possibility that Complainant was slow in returning containers. (FOF, ¶ 85). Regardless, Commission cases uniformly hold that the burden is on Complainant to show the unreasonableness of a detention charge on a container-by-container basis. (*Samsung*, 2026 WL 2427726, at *12 (citing cases))).⁹

In conclusion, I find that Complainant has carried its burden of showing a violation of Section 41102(c), but only to the extent that it can demonstrate that containers could not be returned for reasons beyond its control. As noted above, those dates are September 7, 14, 21, 23, and 30, 2022, October 1, 3, and 13-14, 2022, and November 10-11, 2022. Accordingly, Count II is **GRANTED IN PART** and **DENIED IN PART**. As discussed below, the Detention Spreadsheet (attached to the Grafton Declaration as Exhibit E) shows which containers were charged detention, and the dates for which said detention was charged.

G. Reparations

The Commission “shall direct the payment of reparations to the complainant for actual injury caused by a violation” of the Shipping Act. (46 U.S.C. § 41305(b)). The term “actual injury” includes “the loss of interest at commercial rates compounded from the date of injury.” (46 U.S.C. § 41305(a)). Complainant bears the burden of proving that it is entitled to reparations. (*MAVL Capital Inc. v. Marine Transport Logistics, Inc.*, Dkt. No. 16-16, 2022 WL 2209421, at *3 (FMC June 10, 2022)). The Commission explained that: “(a) damages must be the proximate result of violations of the statute in question; (b) there is no presumption of damage; and (c) the violation in and of itself without proof of pecuniary loss resulting from the unlawful act does not afford a basis for reparation.” (*MAVL Capital*, 2022 WL 2209421, at *3 (quotations omitted)). Reparations will only be awarded based on actual damages. (*Id.*) (quotations omitted)). “Actual damages means ‘compensation for the actual loss or injuries sustained by reason of the wrongdoing’ which complainants must show to a reasonable degree of certainty.” (*Id.* (quotations omitted)). “That does not require absolute precision but does require evidence sufficient to reasonably infer the actual loss sustained.” (*Id.* (quotations omitted)).

⁹ All of the detention charges at issue post-date OSRA 22. I do not treat them as a Charge Complaint – which would make the carrier bear the burden of establishing the reasonableness of the detention charge (46 U.S.C. § 41310(b)(2)) – because the Complaint does not include the bill of lading number and the invoices. (*See Charge Complaint Procedures*, 91 FED. REG. 56053, 56056).

As noted above, I concluded that Respondent violated Sections 41102(c), 41104(a)(2), and 41102(a)(10) by means of its practices of unreasonably preferring higher-paying customers over others. I also concluded that Respondent violated Section 41102(c) by charging detention to Complainant when Complainant presented evidence that it was unable to return a container due to a lack of available return appointments.

Almost all evidence supporting Complainant's claim for reparations comes from the Grafton Declaration. Respondent challenges the admissibility of the Grafton Declaration. Respondent first argues that the Grafton Declaration was not produced. That is not persuasive. Under Rule 37(c) of the Federal Rules of Civil Procedure, evidence or witnesses can be excluded if a party fails to disclose relevant information. (FED. R. CIV. P. 37(c)). The analogous Commission Rule, 46 C.F.R. § 502.150, does not have a comparable exclusion rule. Which makes sense given that there are more liberal standards for admitting evidence in Commission proceedings than there are in federal court. (*Samsung*, 2026 WL 2427726, at *17; *OJ Commerce, LLC v. Hamburg Sudamerikanische Dampfschiffahrts-Gesellschaft A/S & Co. KG & Hamburg Sud N. Am., Inc.*, Dkt. No. 21-11, 2024 WL 4034610, at *22 (FMC Aug. 27, 2024) ("*OJ Commerce II*"). Respondent also cites *Hapag-Lloyd* for the proposition that at least one ALJ "indicated that sworn statements from persons not identified as witnesses that are not produced" are subject to exclusion. (Response, at 34 (citing *Hapag-Lloyd*, 2022 WL 1239377, at *4)). But, although Chief Judge Wirth warned that a sworn statement that was not produced by a witness that was not disclosed may be excluded, Chief Judge Wirth admitted the sworn statement in that case. (*Hapag-Lloyd*, 2022 WL 1239377, at *4). In light of the liberal admissibility standards, and the lack of any rule excluding statements not produced in discovery, I reject Respondent's argument regarding the admissibility of the Grafton Declaration.

Respondent also challenges the admissibility of rates Complainant paid NVOCCs based on the so-called "Best Evidence Rule," which is set forth in Rules 1002 and 1003 of the Federal Rules of Evidence. In general, the Best Evidence Rule provides that "[a]n original writing, recording, or photograph is required in order to prove its content unless these rules or a federal statute provides otherwise." (FED. R. EVID. 1002; *see also* 46 C.F.R. § 502.204(a) ("The presiding officer may consider the Federal Rules of Evidence for guidance.")). In other words, to prove the terms of a document, such as a contract, a copy of the document itself (or a copy of the document) must be admitted into evidence unless an exception applies, such as the original being lost or destroyed, and not by the proponent acting in bad faith. (FED. R. EVID. 1004(a); *Nicosia v. Amazon.com, Inc.*, 384 F. Supp. 3d 254, 268 (E.D.N.Y. 2019)). Here, however, the rates Complainant paid an NVOCC do not need to be derived from the contract itself; the rates can be derived from invoices. Indeed, the Grafton Declaration indicates that Exhibits B and D, which describe NVOCC invoices, were created from the underlying invoices. (*See* FOF, ¶¶ 88, 90). In turn, the invoices can be summarized so long as the originals were made available to the opposing party. (FED. R. EVID. 1006). It appears that invoices were produced, and Respondent does not argue otherwise. (*See* APP1139-APP1141). Therefore, I am not persuaded that the Best Evidence Rule is a basis for excluding the Grafton Declaration.

Respondent argues that Complainant failed to mitigate its damages. Respondent argues that Complainant does not allege, much less prove, that it made any attempt to mitigate its damages. Respondent points out that Complainant had service contracts with other carriers, and that there is no evidence Complainant made any attempt to have its cargo transported by another

carrier, which would have largely eliminated any damages. Alternatively, Complainant's damages should be limited to the average difference in rate between Complainant's carrier contracts and NVOCC contracts of \$853.60 per FEU, as Complainant shipped much of its cargo with NVOCCs with whom it did not have a contract. (Response, at 34-35).

A party has a duty to mitigate damages it could have reasonably avoided. (*OJ Commerce II*, 2024 WL 4034610, at *33). Failure to mitigate damages is an affirmative defense, and the burden of proof is on the party seeking to establish the defense. (*Id.*). I find that Respondent has not carried the burden of establishing a failure to mitigate defense. Respondent's affirmative defense consists merely of pointing out the fact that Complainant had other service contracts. (Response, at 34-36; FOF, ¶ 20). Considering, however, that Complainant had no guarantee that its transportation costs would ever be covered, it can be fairly assumed that Complainant acted reasonably and prudently, and used the best available options to transport its cargo. In other words, in light of the fact that Complainant was footing the bill to transport its cargo, it is highly likely that if Complainant could have simply transported its cargo on another carrier with whom Complainant had a service contract, Complainant likely would have. Instead, it is very likely that Complainant paid over \$15,000 per container to transport its cargo, instead of roughly \$5,000 per container (Complainant's per-container rate with Respondent, *see* FOF, ¶¶ 87-88) because Complainant had to. Therefore, Respondent does not carry its burden of proving its affirmative defense by simply playing Monday-morning quarterback, and pointing out that Complainant had other service contracts. (*See Taco Bell, Inc. v. Continental Cas. Corp.*, 388 F.3d 1069, 1075-77 (7th Cir. 2004) (Posner, J.) (holding that after an insurance company denied coverage, the insurance company could not later challenge the reasonableness of its insured's legal bills when the insured had no reasonable expectation that its legal bills would be covered, and thus presumably acted in a reasonable and prudent manner)).

1. Amount of Reparations; Excess Amounts

As for the amount of reparations, Exhibit A to the Grafton Declaration shows amounts Complainant paid over the contract rates in PSS and SPGo. In the aggregate, Exhibit A shows \$1,099,525.08 in excess amounts paid.¹⁰

Respondent does not contest the accuracy of Exhibit A, but instead argues that these fees were not coerced, as Complainant agreed to them and amended the Relevant Contract to include them. (RCPFF, ¶ 66). I do not find Respondent's argument to be persuasive. Respondent apparently marketed that PSS and SPGo were sold as ways ensure continuous service or to make sure cargo is not rolled. (FOF, ¶¶ 24, 30). Other customers apparently complained about the PSS. (FOF, ¶ 27). And Respondent's salesperson all but communicated to Complainant that

¹⁰ In the Opening Brief, Complainant asserts that these amounts are available under its Section 41104(a)(2) claim, as opposed to its Section 41102(c) claim. (Opening Brief, at 43-44). Complainant does not explain its reasoning. Regardless, I find that the amounts described in this section are available under either the Section 41102(c) claim or the Section 41104(a)(2) claim.

Complainant needed to agree to PSS to have its cargo shipped.¹¹ (FOF, ¶ 14). In other words, Complainant had little choice but to accept the higher rates and extra fees.

Because the only objection to Exhibit A that Respondent raised is not meritorious, I am satisfied that Exhibit A reflects the amount of actual damage Complainant sustained due to additional PSS and SPGo fees that it needed to pay, on top of the contract amounts, in order to have its cargo shipped. Accordingly, I find that Complainant is entitled to \$1,099,525.08 in reparations for excess amounts paid.

2. Amount of Reparations; Replacement Transportation

Exhibits B and D to the Grafton Declaration show amounts Complainant spent in procuring alternative transportation, including inland transit. Complainant spent \$5,243.82 per container for ocean freight for containers shipped under the Relevant Contract. (*See* FOF, ¶ 87). Exhibit B shows that the average amount Complainant spent per container for alternative ocean transportation during the Relevant Contract period was \$15,754.20. (FOF, ¶ 88). The difference between the average rate per container under alternative rates versus the average rate per container under the contract is \$10,510.18. Multiplying that amount by the number of containers for which Complainant obtained alternative transportation – 1,243 – Complainant calculates \$13,064,153.74 in damages. (Opening Brief, at 43-44).

As for Exhibit D, Complainant argues that it needed to procure alternative inland transportation for its containers. In aggregate, Exhibit D shows Complainant incurred an additional \$3,121,416.15 in inland freight costs. (FOF, ¶ 90).

In addition to the arguments raised above, Respondent argues that Complainant failed to prove causation. (Response, at 36-38; *see also* RCPFF, ¶¶ 63-64). Similar to Respondent's mitigation of damages argument, Respondent argues that Complainant had several other service contracts, and Complainant did not fulfill any of its MQC commitments. This argument is not persuasive. As discussed, Respondent acted unreasonably by implementing a practice of preferring customers willing to pay higher amounts, and not honoring its commitment to Complainant. Evidence shows, in turn, that Complainant was only able to utilize less than 40% of its MQC with Respondent, Complainant's principal expressed frustration at not being able to get its cargo shipped – apparently because it was not a VIP customer – and Complainant ultimately agreed to pay substantially higher rates and extra fees. (FOF, ¶¶ 11, 13, 15, 17, 36, 44, 46). Considering that Complainant had no reasonable expectation that it would have its cargo costs covered, I find it is more likely than not that Complainant acted in a reasonable and prudent way to keep costs down while transporting cargo using alternative means.

¹¹ In commenting on the email from Respondent's salesperson to Complainant's principal (FOF, ¶ 14), Respondent argued that because Complainant agreed to the PSS charge, there is no evidence that Respondent would have carried less cargo. (RCPFF, ¶ 41). In other words, Respondent argued that Complainant should have called Respondent's bluff. It simply is not just and reasonable for a carrier to require its customer to gamble (literally) about whether the carrier will honor its contract terms if the customer does not agree to pay extra fees.

The Grafton Declaration indicates that both Exhibits B and D were accurately drawn from the underlying invoices. (FOF, ¶¶ 88, 90). Respondent admits it has no basis to challenge the amounts Complainant paid for alternative transportation. (RCPFF, ¶¶ 63-64). Therefore, I have no reason to question or doubt the accuracy of Exhibits B or D.

As for Complainant's claim for inland transportation, the Relevant Contract included inland transportation. (FOF, ¶ 8). Therefore, if Complainant needed replacement ocean transportation due to Respondent's unreasonable conduct, Complainant would also need replacement inland transportation. Because Exhibit D shows amounts Complainant paid for replacement inland transportation, I find it to be a reasonable estimate of the actual injury Complainant suffered due to Respondent's unreasonable conduct. Accordingly, I find that Complainant is entitled to reparations in the amount shown in Exhibit D, which is \$3,121,416.15 in inland freight costs.

Regarding Complainant's claim for ocean transportation, Complainant needed to replace ocean transportation as well. Complainant notes that it was able to ship 757 FEUs pursuant to the Relevant Contract, and was unable to ship 1,243 FEUs. Although it shipped 1,556 FEUs with NVOCCs during the Relevant Contract period, its recovery against Respondent should be limited to the 1,243 TEUs of space under the Relevant Contract that Complainant was unable to use. (Opening Brief, at 44). Multiplying 1,243 by the difference between the average replacement cost per container (\$15,754.20 (*see* FOF ¶ 88)) less the average contract rate per container (\$5,243.82 (*see* FOF, ¶ 87)) is \$13,064,402.34 ($\$15,754.20 - \$5,243.82 = \$10,510.38$; $\$10,510.38 \times 1,243 = \$13,064,402.34$).

Exhibit B requires some adjustment. Although the Relevant Contract itself did not have an allocation based on country, the parties agreed that Complainant was entitled to 12 FEUs per week from Vietnam. (FOF, ¶ 9). The Relevant Contract was in effect for 58 weeks, from March 19, 2021, through April 30, 2022. (FOF, ¶ 8). Multiplying 58 weeks by 12 FEU means that Complainant was permitted, at most, an allocation of 696 FEUs from Vietnam during the life of the contract. Exhibit A, however, shows that Complainant shipped 445 containers from Vietnam to the United States pursuant to the Relevant Contract, and Exhibit B shows Complainant shipped 585 containers from Vietnam to the United States using NVOCCs. (FOF, ¶¶ 87-88). Likewise, the relevant contract only permitted an allocation of 10 containers per week from Malaysian ports, or 580 over the life of the 58-week contract. (FOF, ¶ 9). But Exhibits A and B show 104 and 508 containers from Malaysian ports, respectively, for a total of 612. (FOF, ¶¶ 87-88). Between the shipments from Vietnam and Malaysia, Complainant shipped 376 containers more than allocated under the Relevant Contract. The amount Complainant is entitled to should therefore be adjusted accordingly.

The difference between the number of containers actually shipped by NVOCCs (1,556) and the number of unused FEUs remaining under the Relevant Contract is 313 FEUs. The number of containers shipped by NVOCCs (1,556) should be reduced by at least 376 FEUs, which is the number of containers over the allocation that Complainant had shipped by NVOCCs. The difference between 1,556 and 376 is 1,180. Multiplying 1,180 by \$10,510.38 is \$12,402,248.40.

3. Amount of Damages; Additional Amounts

Complainant also asks for “additional amounts” of reparations (*see* 46 C.F.R. § 41305(c)) for its Section 41102(c) claims under Count I, which are the amounts discussed in the previous subsection of this Initial Decision.

On June 16, 2022, the Shipping Act was amended to allow the Commission to award additional amounts of reparations for a violation of Section 41102(c). (*See* OSRA 22). Complainant acknowledges that the Shipping Act was amended after the 2022-2023 service contract had already been in place between the parties for several months. (Opening Brief, at 45; FOF, ¶ 18). Nevertheless, Complainant argues that the amendment to OSRA allowing for additional amounts of reparations should apply retroactively to address situations like this. (Opening Brief, at 45; Reply, at 29). The Commission recently rejected a similar argument. (*Samsung*, 2026 WL 2427726, at * 24 (“SEA seeks double reparations even for pre-OSRA 2022 violations, citing ‘the interests of equity,’ . . . but that would be inconsistent with the statute at the time of the violations, and OSRA 2022 does not apply retroactively.”) (internal citations omitted)).

Therefore, additional amounts of reparations are not available for Complainant’s Count I claims.¹²

4. Amount of Reparations; Detention Charges

As noted in the discussion section above, I find that there is evidence that Complainant was unable to return containers to the rail terminal in Denver on certain dates, namely September 7, 14, 21, 23, and 30, 2022, October 1, 3, and 13-14, 2022, and November 10-11, 2022. The Detention Spreadsheet shows that Complainant paid Respondent \$879,260 in detention charges from August 2022 through November 2022. The Grafton Declaration affirms that the Detention Spreadsheet is an accurate summary of Respondent’s detention invoices.

Respondent denies that Complainant’s “assessment of detention charges is accurate or supported by the evidence presented.” (RCPFF, ¶ 68). But aside from this general denial, Respondent does not give any specific reasons to question or doubt the accuracy of the Detention Spreadsheet.

The Detention Spreadsheet does not identify daily detention charges. But, based on the amounts of detention charged, it appears that Respondent charged \$185 per day for the first four days after the expiration of free time, and \$220 per day afterwards. For example, Respondent charged \$370 for container no. TCNU4316923, for two days of detention, \$740 for container no. UETU5527974 for four days of detention, \$960 for five days of detention for container no. TEMU7747518, and \$1,400 for seven days of detention for container no. CMAU5202652. (*See* Detention Spreadsheet).

¹² As the unreasonable detention amounts post-date OSRA 22, additional reparations would be potentially available for Complainant’s detention claims. But Complainant does not ask for additional reparations for its detention claims. (*See* Opening Brief, at 43-44). Therefore, I do not address the issue.

Attached hereto is Appendix A. In the far-left column, I identify the dates for which I found that there is evidence that Complainant was unable to return its containers to the Denver rail terminal. The second column from the left is the location of the evidence to support the dates identified. The center column is a list of the containers that were charged detention on the date identified. I drew this information from the Detention Spreadsheet, which shows the dates for which each container was charged detention. The second column from the right shows the total detention charged per container for all days of detention. I also took this information from the Detention Spreadsheet.

The far-right column shows daily detention amounts charged. In this column, I identified the amount of detention that would have been charged for the date for which detention was improperly charged. I assumed that if the total demurrage charge was \$960 or greater, the daily detention charge was \$220. For example, I found that the daily detention charge for container no. TEMU7747518 on September 23, 2022, was \$220. Even though the entire charge for container no. TEMU7747518 was \$960, which represents five days of detention (four days at \$185/per day, and a fifth day at \$220/day), Respondent should have charged only four days of detention. There are also several containers for which Complainant was charged detention improperly for several days, such as container no. APHU7379356. I checked if the daily detention charge should be adjusted to \$185 per day, instead of \$220 per day (if, for example, five total days of detention were charged, of which two were improper, then there should have been three days of proper detention). There was only one such container, TCNU8122340, for which I adjusted the daily charge.

I aggregated the improper daily detention charges. In sum, I find that Complainant has demonstrated that Respondent charged \$141,305 in improper daily detention charges. Therefore, Complainant is entitled to reparations of \$141,305.

5. Amount of Reparations; Interest.

As for interest, interest runs from the date of injury. (46 U.S.C. § 41305(a)). In the case of multiple shipments:

[I]t would not appear to be unreasonable to determine that the mid-point date of the period of all eligible shipments was the date of injury for the claim, because such a date may award [Complainant] approximately the same amount of interest as being calculated using each shipment date, by evening out the earlier and later dates of injury.

(*Color Brands, LLC v. AAF Logistics, Inc.*, Dkt. No. 22-18, 8 F.M.C.2d 123, 126-27, 2024 WL 246193 (FMC Jan. 18, 2024)).

Here, there are two sets of reparations. First, there are reparations related to Complainant's claim that Respondent did not act reasonably in response to a space shortage, but instead preferred to ship cargo for shippers who paid extra amounts over and above any agreed-to contracted rates. The Relevant Contract period was March 19, 2021, through April 30, 2022. As noted, this period is 58 weeks. The mid-point of this range would be 29 weeks, or October 8, 2021.

Second, the other set of reparations is related to Complainant's claim regarding unjust and unreasonable detention charges. Reviewing the Declaration Spreadsheet, Respondent issued the first detention invoice in mid-September 2022, the majority of the detention invoices in October 2022, another substantial portion of invoices in November 2022, and the last detention invoices in early December 2022. Therefore, I find November 1, 2022, to be a reasonable mid-point of the relevant period for purposes of determining the date of "actual injury."

6. Amount of Reparations; Conclusion

For the reasons discussed, I find that Complainant is entitled to reparations in the amount of \$1,099,525.08 for excessive charges, \$3,121,416.15 for replacement inland freight charges, and \$12,402,248.40 in replacement ocean freight charges, with interest pursuant to Section 41305(a) running from October 8, 2021. In other words, Complainant is entitled to reparations in the amount of \$16,623,189.63, with interest running from October 8, 2021. As for detention charges, Complainant is entitled to \$141,305 with interest running from November 1, 2022.

V. MOTIONS FOR CONFIDENTIAL TREATMENT

As discussed above, each party filed a motion for confidential treatment. Judge Hervey rejected Complainant's initial CMCT1 in the May 28 Order, but Complainant refiled a similar motion per Judge Hervey's instructions.

On May 16, 2024, Chief Judge Wirth issued an Initial Order that provided detailed information about filing confidential material. The Initial Order provided that if confidential information is filed, a "motion justifying confidential treatment" that showed "good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information" is required. (Initial Order, at 5 (citing 46 C.F.R. § 502.141(j)(1)). The Initial Order also indicated that the confidential information should be clearly and conspicuously marked in the confidential version of the filings and blacked out in the public version. (Initial Order, at 5-6). Commission Rule 5 states that: "Confidential information in exhibits should be marked as specified above. If marking within the text is not feasible, individual pages may be replaced in the public version with a page indicating that confidential material is excluded. Entire exhibits should not be excluded, only those pages containing confidential material." (46 C.F.R. § 502.5(a)(2)(iii) (emphasis added)).

I reviewed the material marked as confidential by the parties. In general, I agree that the material marked confidential constitutes either trade secrets or commercial information, such as names of Respondent's other customers, or other carriers with whom Complainant had a shipping contract. Therefore, I am persuaded that both the CMCT2 and the RMCT should be **GRANTED**.

VI. CONCLUSION

After carefully reviewing the Opening Brief, Response, Reply, accompanying material, and other materials in the record, it is **HEREBY ORDERED** that Complainant's Count I, asserting that Respondent violated Section 41102(c) of the Shipping Act because of its shipping practices is **GRANTED**. It is

FURTHER ORDERED that Complainant's Count II, asserting that Respondent violated Section 41102(c) by imposing unreasonable detention, is **GRANTED**. It is

FURTHER ORDERED that Complainant's Count III, asserting that Respondent violated Section 41104(a)(2) by violating the Filed Rate Doctrine, is **GRANTED**. It is

FURTHER ORDERED that Complainant's Count V, asserting that Respondent violated Section 41104(a)(10), is **GRANTED**. It is

FURTHER ORDERED that the CMCT2 and RMCT are **GRANTED**. It is

FURTHER ORDERED that Complainant is entitled to reparations in the amount of \$16,623,189.63 plus interest from October 9, 2021. It is

FURTHER ORDERED that Complainant is also entitled to reparations in the amount of \$141,305 plus interest from November 1, 2022. It is

FURTHER ORDERED that this matter is **DISCONTINUED**.

Richard C.
Ambrow Jr -S

Richard Ambrow
Administrative Law Judge

Digitally signed by Richard C. Ambrow Jr -S
Date: 2026.09.08 11:33:09 -07'00'

APPENDIX A
UNJUST AND UNREASONABLE DETENTION CHARGES

Date Which Containers Could Not Be Returned	Evidence Location	Containers for Which Detention was Charged on Date Container Could Not Be Returned	Total Detention Charged Per Relevant Container	Daily Detention Charge for Date Container Could Not Be Returned
September 7, 2022	APP0736	CMAU5202652	\$1,400.00	\$220.00
		CMAU6772032	\$3,160.00	\$220.00
		CMAU4669431	\$3,600.00	\$220.00
		CMAU7277727	\$2,720.00	\$220.00
		CMAU7835135	\$3,600.00	\$220.00
		SEKU5527024	\$3,600.00	\$220.00
		CMAU5590183	\$3,380.00	\$220.00
		TCLU6087109	\$5,360.00	\$220.00
		SEKU6061136	\$3,380.00	\$220.00
		TEMU6151268	\$3,380.00	\$220.00
		APHU7228895	\$2,720.00	\$220.00
		FBLU0096725	\$4,700.00	\$220.00
		CMAU7112917	\$5,800.00	\$220.00
		TCNU8335958	\$4,260.00	\$220.00
		CMAU6727687	\$3,600.00	\$220.00
		BEAU5614333	\$3,380.00	\$220.00
		CMAU7416843	\$2,940.00	\$220.00
		TRHU7686118	\$3,820.00	\$220.00
		UETU5527974	\$740.00	\$185.00
		APHU7293000	\$4,260.00	\$220.00
		GESU6167047	\$4,260.00	\$220.00
			Refund Subtotal for September 7, 2022	\$4,585.00
September 14, 2022	APP0737-	CMAU4666319	\$2,720.00	\$220.00
	APP0738,	CMAU7586243	\$3,600.00	\$220.00
	APP0740-	APHU6361481	\$2,720.00	\$220.00
	APP0742	CMAU5713523	\$3,380.00	\$220.00
		CMAU8901761	\$3,160.00	\$220.00
		FDCU0239187	\$2,720.00	\$220.00
		CMAU6919756	\$2,720.00	\$220.00
		TCNU5668765	\$3,380.00	\$220.00
		CMAU7764026	\$2,720.00	\$220.00
		TLLU4268702	\$3,380.00	\$220.00
		GLDU7595072	\$4,040.00	\$220.00
		TRHU6716007	\$2,720.00	\$220.00
		FCIU8973577	\$2,720.00	\$220.00
		SEGU6191650	\$3,600.00	\$220.00
		APHU7293000	\$4,260.00	\$220.00
		GESU6167047	\$4,260.00	\$220.00
		CMAU7051806	\$3,600.00	\$220.00
		CMAU5472982	\$4,260.00	\$220.00
		TLLU4624573	\$4,260.00	\$220.00
		TRHU8263656	\$4,260.00	\$220.00

		BEAU4762296	\$4,700.00	\$220.00
		CMAU7581961	\$3,600.00	\$220.00
		CMAU4101082	\$3,600.00	\$220.00
		CMAU5772531	\$3,820.00	\$220.00
		CAIU9664698	\$4,700.00	\$220.00
		GCXU5845765	\$4,700.00	\$220.00
		AMFU8823190	\$4,700.00	\$220.00
		FCIU9226149	\$4,700.00	\$220.00
		CMAU6575579	\$4,920.00	\$220.00
		CMAU5361470	\$5,800.00	\$220.00
		CMAU7219248	\$7,780.00	\$220.00
		TGHU6448751	\$9,760.00	\$220.00
			Refund Subtotal for September 14, 2022	\$7,040.00
September 21, 2022	APP0738-	CMAU4571701	\$2,060.00	\$220.00
	APP0740	CMAU4666319	\$2,720.00	\$220.00
		SEGU4107249	\$2,060.00	\$220.00
		CMAU7586243	\$3,600.00	\$220.00
		CMAU8912004	\$2,060.00	\$220.00
		TEMU6462721	\$2,280.00	\$220.00
		APHU6361481	\$2,720.00	\$220.00
		CMAU5713523	\$3,380.00	\$220.00
		CMAU8901761	\$3,160.00	\$220.00
		CMAU4571701	\$2,060.00	\$220.00
		FDCU0239187	\$2,720.00	\$220.00
		CMAU6919756	\$2,720.00	\$220.00
		TCNU5668765	\$3,380.00	\$220.00
		CMAU7764026	\$2,720.00	\$220.00
		TLLU4268702	\$3,380.00	\$220.00
		GLDU7595072	\$4,040.00	\$220.00
		CMAU6450988	\$2,060.00	\$220.00
		TCKU7904802	\$2,500.00	\$220.00
		TRHU6716007	\$2,720.00	\$220.00
		FCIU8973577	\$2,720.00	\$220.00
		SEGU6191650	\$3,600.00	\$220.00
		GESU6608369	\$2,500.00	\$220.00
		FFAU1682607	\$2,280.00	\$220.00
		CMAU7410547	\$2,500.00	\$220.00
		APHU7293000	\$4,260.00	\$220.00
		GESU6167047	\$4,260.00	\$220.00
		CMAU6674355	\$2,280.00	\$220.00
		CMAU7752107	\$2,060.00	\$220.00
		CMAU7876704	\$1,400.00	\$220.00
		TRHU8578205	\$2,060.00	\$220.00
		CMAU7051806	\$3,600.00	\$220.00
		CMAU5472982	\$4,260.00	\$220.00
		BMOU6977873	\$2,280.00	\$220.00

		TLLU5220880	\$1,620.00	\$220.00
		TLLU4624573	\$4,260.00	\$220.00
		TLLU7548672	\$1,400.00	\$220.00
		TRHU8263656	\$4,260.00	\$220.00
		TXGU6691504	\$1,620.00	\$220.00
		GESU6325815	\$1,400.00	\$220.00
		CMAU7051806	\$3,600.00	\$220.00
		CMAU8489206	\$2,280.00	\$220.00
		CMAU8648946	\$1,620.00	\$220.00
		CMAU8741869	\$2,940.00	\$220.00
		BEAU6100880	\$1,620.00	\$220.00
		CMAU5671201	\$1,840.00	\$220.00
		TRLU7084206	\$1,840.00	\$220.00
		CMAU7544865	\$1,840.00	\$220.00
		GLDU7418457	\$1,840.00	\$220.00
		TEMU7860376	\$4,480.00	\$220.00
		BEAU4762296	\$4,700.00	\$220.00
		CMAU4819932	\$3,160.00	\$220.00
		CMAU7581961	\$3,600.00	\$220.00
		CMAU4101082	\$3,600.00	\$220.00
		TCNU2628460	\$2,280.00	\$220.00
		CMAU7466356	\$3,380.00	\$220.00
		TCNU4368064	\$3,380.00	\$220.00
		CAIU7618564	\$3,380.00	\$220.00
		CMAU5772531	\$3,820.00	\$220.00
		CAIU9664698	\$4,700.00	\$220.00
		GCXU5845765	\$4,700.00	\$220.00
		CMAU7777297	\$2,720.00	\$220.00
		FCIU8090037	\$2,940.00	\$220.00
		FFAU1215475	\$2,720.00	\$220.00
		TCNU1215631	\$2,720.00	\$220.00
		AMFU8823190	\$4,700.00	\$220.00
		FCIU9226149	\$4,700.00	\$220.00
		CMAU6575579	\$4,920.00	\$220.00
		TCNU1104704	\$3,820.00	\$220.00
		FSCU9843638	\$4,040.00	\$220.00
		DRYU9119420	\$2,720.00	\$220.00
		CAIU9624210	\$2,940.00	\$220.00
		LCGU8267754	\$2,940.00	\$220.00
		ECMU9539346	\$4,040.00	\$220.00
		CMAU5361470	\$5,800.00	\$220.00
		BMOU6614292	\$4,480.00	\$220.00
		SEGU4815253	\$4,260.00	\$220.00
		GESU6528197	\$3,820.00	\$220.00
		CMAU6417444	\$3,820.00	\$220.00
		TCLU6532400	\$3,820.00	\$220.00
		TGHU8902101	\$1,840.00	\$220.00
		CMAU7125848	\$4,920.00	\$220.00
		CMAU7219248	\$7,780.00	\$220.00

		SEGU4411565	\$6,020.00	\$220.00
		TGHU6448751	\$9,760.00	\$220.00
			Refund Subtotal for September 14, 2022	\$18,480.00
September 23, 2022	APP0734-	CMAU4571701	\$2,060.00	\$220.00
	APP0735	CMAU4666319	\$2,720.00	\$220.00
		SEGU4107249	\$2,060.00	\$220.00
		CMAU7586243	\$3,600.00	\$220.00
		CMAU8912004	\$2,060.00	\$220.00
		TEMU6462721	\$2,280.00	\$220.00
		APHU6361481	\$2,720.00	\$220.00
		CMAU5713523	\$3,380.00	\$220.00
		CMAU8901761	\$3,160.00	\$220.00
		FDCU0239187	\$2,720.00	\$220.00
		CMAU6919756	\$2,720.00	\$220.00
		TCNU5668765	\$3,380.00	\$220.00
		CMAU7764026	\$2,720.00	\$220.00
		TLLU4268702	\$3,380.00	\$220.00
		GLDU7595072	\$4,040.00	\$220.00
		CMAU6450988	\$2,060.00	\$220.00
		TCKU7904802	\$2,500.00	\$220.00
		TRHU6716007	\$2,720.00	\$220.00
		FCIU8973577	\$2,720.00	\$220.00
		SEGU6191650	\$3,600.00	\$220.00
		GESU6608369	\$2,500.00	\$220.00
		FFAU1682607	\$2,280.00	\$220.00
		CMAU7410547	\$2,500.00	\$220.00
		APHU7293000	\$4,260.00	\$220.00
		GESU6167047	\$4,260.00	\$220.00
		CMAU6674355	\$2,280.00	\$220.00
		CMAU7752107	\$2,060.00	\$220.00
		CMAU7876704	\$1,400.00	\$220.00
		TRHU8578205	\$2,060.00	\$220.00
		CMAU7051806	\$3,600.00	\$220.00
		CMAU5472982	\$4,260.00	\$220.00
		BMOU6977873	\$2,280.00	\$220.00
		TLLU5220880	\$1,620.00	\$220.00
		TLLU4624573	\$4,260.00	\$220.00
		TLLU7548672	\$1,400.00	\$220.00
		TRHU8263656	\$4,260.00	\$220.00
		TXGU6691504	\$1,620.00	\$220.00
		GESU6325815	\$1,400.00	\$220.00
		TEMU7747518	\$960.00	\$220.00
		CMAU8489206	\$2,280.00	\$220.00
		CMAU8648946	\$1,620.00	\$220.00
		CMAU8741869	\$2,940.00	\$220.00
		APHU7041517	\$1,180.00	\$220.00

	BEAU6100880	\$1,620.00	\$220.00
	CMAU5671201	\$1,840.00	\$220.00
	TRLU7084206	\$1,840.00	\$220.00
	CMAU7544865	\$1,840.00	\$220.00
	GLDU7418457	\$1,840.00	\$220.00
	TEMU7860376	\$4,480.00	\$220.00
	BEAU4762296	\$4,700.00	\$220.00
	CMAU4819932	\$3,160.00	\$220.00
	CMAU7581961	\$3,600.00	\$220.00
	CMAU4101082	\$3,600.00	\$220.00
	TCNU2628460	\$2,280.00	\$220.00
	CMAU7466356	\$3,380.00	\$220.00
	TCNU4368064	\$3,380.00	\$220.00
	CAIU7618564	\$3,380.00	\$220.00
	CMAU5772531	\$3,820.00	\$220.00
	FCIU7267597	\$1,840.00	\$220.00
	CAIU9664698	\$4,700.00	\$220.00
	GCXU5845765	\$4,700.00	\$220.00
	CMAU7777297	\$2,720.00	\$220.00
	FCIU8090037	\$2,940.00	\$220.00
	FFAU1215475	\$2,720.00	\$220.00
	TCNU1215631	\$2,720.00	\$220.00
	AMFU8823190	\$4,700.00	\$220.00
	FCIU9226149	\$4,700.00	\$220.00
	CMAU6575579	\$4,920.00	\$220.00
	TCNU1104704	\$3,820.00	\$220.00
	FSCU9843638	\$4,040.00	\$220.00
	DRYU9119420	\$2,720.00	\$220.00
	TRHU5955624	\$2,720.00	\$220.00
	CAIU9624210	\$2,940.00	\$220.00
	SEKU5582720	\$2,720.00	\$220.00
	LCGU8267754	\$2,940.00	\$220.00
	CMAU7202760	\$2,720.00	\$220.00
	CMAU7451464	\$2,720.00	\$220.00
	CRSU9175860	\$2,720.00	\$220.00
	CMAU8440741	\$2,940.00	\$220.00
	TCNU3486822	\$2,940.00	\$220.00
	TGHU9321971	\$2,940.00	\$220.00
	TRHU8956856	\$2,940.00	\$220.00
	ECMU9539346	\$4,040.00	\$220.00
	CMAU5361470	\$5,800.00	\$220.00
	BEAU5964692	\$2,940.00	\$220.00
	TCNU1861647	\$2,940.00	\$220.00
	BMOU6614292	\$4,480.00	\$220.00
	SEGU4815253	\$4,260.00	\$220.00
	TEMU6959549	\$3,160.00	\$220.00
	CMAU4394458	\$3,160.00	\$220.00
	GESU6528197	\$3,820.00	\$220.00
	CMAU4664980	\$3,600.00	\$220.00

		CMAU6417444	\$3,820.00	\$220.00
		TCLU6532400	\$3,820.00	\$220.00
		BEAU4764874	\$3,600.00	\$220.00
		CMAU4148881	\$3,820.00	\$220.00
		TGHU8902101	\$1,840.00	\$220.00
		CMAU7125848	\$4,920.00	\$220.00
		SKIU9068800	\$4,260.00	\$220.00
		TCNU8259539	\$4,260.00	\$220.00
		BMOU6420759	\$4,480.00	\$220.00
		APHU6703115	\$4,700.00	\$220.00
		CMAU7219248	\$7,780.00	\$220.00
		SEGU4411565	\$6,020.00	\$220.00
		TGHU6448751	\$9,760.00	\$220.00
			Refund Subtotal for September 23, 2022	\$25,300.00
September 30, 2022	APP0749-	TEMU7860376	\$4,480.00	\$220.00
	APP0750	BEAU4762296	\$4,700.00	\$220.00
		CMAU4819932	\$3,160.00	\$220.00
		CMAU7581961	\$3,600.00	\$220.00
		CMAU4101082	\$3,600.00	\$220.00
		TCNU2628460	\$2,280.00	\$220.00
		CMAU7466356	\$3,380.00	\$220.00
		TCNU4368064	\$3,380.00	\$220.00
		CAIU7618564	\$3,380.00	\$220.00
		CMAU5772531	\$3,820.00	\$220.00
		FCIU7267597	\$1,840.00	\$220.00
		CAIU9664698	\$4,700.00	\$220.00
		GCXU5845765	\$4,700.00	\$220.00
		CMAU7777297	\$2,720.00	\$220.00
		FCIU8090037	\$2,940.00	\$220.00
		FFAU1215475	\$2,720.00	\$220.00
		TCNU1215631	\$2,720.00	\$220.00
		AMFU8823190	\$4,700.00	\$220.00
		FCIU9226149	\$4,700.00	\$220.00
		CMAU6575579	\$4,920.00	\$220.00
		TCNU1104704	\$3,820.00	\$220.00
		FSCU9843638	\$4,040.00	\$220.00
		DRYU9119420	\$2,720.00	\$220.00
		TRHU5955624	\$2,720.00	\$220.00
		CAIU9624210	\$2,940.00	\$220.00
		SEKU5582720	\$2,720.00	\$220.00
		LCGU8267754	\$2,940.00	\$220.00

		CMAU7202760	\$2,720.00	\$220.00
		CMAU7451464	\$2,720.00	\$220.00
		CRSU9175860	\$2,720.00	\$220.00
		CMAU8440741	\$2,940.00	\$220.00
		TCNU3486822	\$2,940.00	\$220.00
		TGHU9321971	\$2,940.00	\$220.00
		TRHU8956856	\$2,940.00	\$220.00
		ECMU9539346	\$4,040.00	\$220.00
		CMAU5361470	\$5,800.00	\$220.00
		BEAU5964692	\$2,940.00	\$220.00
		APHU7379356	\$1,400.00	\$220.00
		CMAU8457430	\$2,060.00	\$220.00
		FFAU3996870	\$2,720.00	\$220.00
		SEKU5936059	\$2,720.00	\$220.00
		TCNU1861647	\$2,940.00	\$220.00
		BMOU6614292	\$4,480.00	\$220.00
		SEGU4815253	\$4,260.00	\$220.00
		TEMU6959549	\$3,160.00	\$220.00
		TCLU9536266	\$2,940.00	\$220.00
		CMAU4394458	\$3,160.00	\$220.00
		CAIU9209230	\$3,160.00	\$220.00
		BEAU5619401	\$3,160.00	\$220.00
		GESU6528197	\$3,820.00	\$220.00
		CMAU4664980	\$3,600.00	\$220.00
		CMAU6417444	\$3,820.00	\$220.00
		TCLU6532400	\$3,820.00	\$220.00
		BEAU4764874	\$3,600.00	\$220.00
		TCLU6591254	\$3,160.00	\$220.00
		SEKU5803204	\$3,600.00	\$220.00
		CMAU4148881	\$3,820.00	\$220.00
		TGHU8680998	\$2,940.00	\$220.00
		GLDU7250764	\$2,940.00	\$220.00
		TRHU5447198	\$2,940.00	\$220.00
		CMAU4532310	\$2,280.00	\$220.00
		TGHU8902101	\$1,840.00	\$220.00
		TCNU2957511	\$2,720.00	\$220.00
		CMAU9163723	\$3,820.00	\$220.00
		CMAU7125848	\$4,920.00	\$220.00
		SKIU9068800	\$4,260.00	\$220.00
		TCNU8259539	\$4,260.00	\$220.00
		BMOU6420759	\$4,480.00	\$220.00
		GESU5008740	\$3,380.00	\$220.00

		GESU6370157	\$3,380.00	\$220.00
		TGBU5809375	\$3,380.00	\$220.00
		APHU6703115	\$4,700.00	\$220.00
		CMAU7219248	\$7,780.00	\$220.00
		SEGU4411565	\$6,020.00	\$220.00
		CMAU9222981	\$5,140.00	\$220.00
		CXDU1819637	\$4,700.00	\$220.00
		TRLU7080258	\$4,920.00	\$220.00
		GLDU7539649	\$6,020.00	\$220.00
		TGHU6066300	\$5,360.00	\$220.00
		TGHU6448751	\$9,760.00	\$220.00
			Refund Subtotal for September 30, 2022	\$17,600.00
October 1, 2022	APP0747-	CMAU7466356	\$3,380.00	\$220.00
	APP0749	TCNU4368064	\$3,380.00	\$220.00
		CAIU7618564	\$3,380.00	\$220.00
		CMAU5772531	\$3,820.00	\$220.00
		FCIU7267597	\$1,840.00	\$220.00
		CAIU9664698	\$4,700.00	\$220.00
		GCXU5845765	\$4,700.00	\$220.00
		CMAU7777297	\$2,720.00	\$220.00
		FCIU8090037	\$2,940.00	\$220.00
		FFAU1215475	\$2,720.00	\$220.00
		TCNU1215631	\$2,720.00	\$220.00
		AMFU8823190	\$4,700.00	\$220.00
		FCIU9226149	\$4,700.00	\$220.00
		CMAU6575579	\$4,920.00	\$220.00
		TCNU1104704	\$3,820.00	\$220.00
		FSCU9843638	\$4,040.00	\$220.00
		DRYU9119420	\$2,720.00	\$220.00
		TRHU5955624	\$2,720.00	\$220.00
		CAIU9624210	\$2,940.00	\$220.00
		SEKU5582720	\$2,720.00	\$220.00
		LCGU8267754	\$2,940.00	\$220.00
		CMAU7202760	\$2,720.00	\$220.00
		CMAU7451464	\$2,720.00	\$220.00
		CRSU9175860	\$2,720.00	\$220.00
		CMAU8440741	\$2,940.00	\$220.00
		TCNU3486822	\$2,940.00	\$220.00
		TGHU9321971	\$2,940.00	\$220.00
		TRHU8956856	\$2,940.00	\$220.00

		ECMU9539346	\$4,040.00	\$220.00
		CMAU5361470	\$5,800.00	\$220.00
		BEAU5964692	\$2,940.00	\$220.00
		APHU7379356	\$1,400.00	\$220.00
		CMAU8457430	\$2,060.00	\$220.00
		FFAU3996870	\$2,720.00	\$220.00
		SEKU5936059	\$2,720.00	\$220.00
		TCNU1861647	\$2,940.00	\$220.00
		BMOU6614292	\$4,480.00	\$220.00
		SEGU4815253	\$4,260.00	\$220.00
		TEMU6959549	\$3,160.00	\$220.00
		TCLU9536266	\$2,940.00	\$220.00
		CMAU4394458	\$3,160.00	\$220.00
		CAIU9209230	\$3,160.00	\$220.00
		BEAU5619401	\$3,160.00	\$220.00
		GESU6528197	\$3,820.00	\$220.00
		CMAU4664980	\$3,600.00	\$220.00
		CMAU6417444	\$3,820.00	\$220.00
		TCLU6532400	\$3,820.00	\$220.00
		BEAU4764874	\$3,600.00	\$220.00
		TCLU6591254	\$3,160.00	\$220.00
		SEKU5803204	\$3,600.00	\$220.00
		CMAU4148881	\$3,820.00	\$220.00
		TGHU8680998	\$2,940.00	\$220.00
		GLDU7250764	\$2,940.00	\$220.00
		TRHU5447198	\$2,940.00	\$220.00
		CMAU4532310	\$2,280.00	\$220.00
		TGHU8902101	\$1,840.00	\$220.00
		TCNU2957511	\$2,720.00	\$220.00
		CMAU9163723	\$3,820.00	\$220.00
		CMAU7125848	\$4,920.00	\$220.00
		BMOU6979855	\$2,500.00	\$220.00
		SKIU9068800	\$4,260.00	\$220.00
		TCNU8259539	\$4,260.00	\$220.00
		BMOU6420759	\$4,480.00	\$220.00
		GESU5008740	\$3,380.00	\$220.00
		GESU6370157	\$3,380.00	\$220.00
		TGBU5809375	\$3,380.00	\$220.00
		CMAU4884270	\$2,720.00	\$220.00
		APHU6703115	\$4,700.00	\$220.00
		CMAU7219248	\$7,780.00	\$220.00
		SEGU4411565	\$6,020.00	\$220.00

		CMAU9222981	\$5,140.00	\$220.00
		CXDU1819637	\$4,700.00	\$220.00
		TRLU7080258	\$4,920.00	\$220.00
		GLDU7539649	\$6,020.00	\$220.00
		TGHU6066300	\$5,360.00	\$220.00
		TGHU6448751	\$9,760.00	\$220.00
			Refund Subtotal for October 1, 2022	\$16,720.00
October 3, 2022	APP0751-	CMAU7777297	\$2,720.00	\$220.00
	APP0758	FCIU8090037	\$2,940.00	\$220.00
		FFAU1215475	\$2,720.00	\$220.00
		TCNU1215631	\$2,720.00	\$220.00
		AMFU8823190	\$4,700.00	\$220.00
		FCIU9226149	\$4,700.00	\$220.00
		CMAU6575579	\$4,920.00	\$220.00
		TCNU1104704	\$3,820.00	\$220.00
		FSCU9843638	\$4,040.00	\$220.00
		DRYU9119420	\$2,720.00	\$220.00
		TRHU5955624	\$2,720.00	\$220.00
		CAIU9624210	\$2,940.00	\$220.00
		SEKU5582720	\$2,720.00	\$220.00
		LCGU8267754	\$2,940.00	\$220.00
		CMAU7202760	\$2,720.00	\$220.00
		CMAU7451464	\$2,720.00	\$220.00
		CRSU9175860	\$2,720.00	\$220.00
		CMAU8440741	\$2,940.00	\$220.00
		TCNU3486822	\$2,940.00	\$220.00
		TGHU9321971	\$2,940.00	\$220.00
		TRHU8956856	\$2,940.00	\$220.00
		ECMU9539346	\$4,040.00	\$220.00
		CMAU5361470	\$5,800.00	\$220.00
		BEAU5964692	\$2,940.00	\$220.00
		APHU7379356	\$1,400.00	\$220.00
		CMAU8457430	\$2,060.00	\$220.00
		FFAU3996870	\$2,720.00	\$220.00
		SEKU5936059	\$2,720.00	\$220.00
		TCNU1861647	\$2,940.00	\$220.00
		BMOU6614292	\$4,480.00	\$220.00
		SEGU4815253	\$4,260.00	\$220.00
		TEMU6959549	\$3,160.00	\$220.00
		TCLU9536266	\$2,940.00	\$220.00

		CMAU4394458	\$3,160.00	\$220.00
		CAIU9209230	\$3,160.00	\$220.00
		BEAU5619401	\$3,160.00	\$220.00
		GESU6528197	\$3,820.00	\$220.00
		CMAU4664980	\$3,600.00	\$220.00
		CMAU6417444	\$3,820.00	\$220.00
		TCLU6532400	\$3,820.00	\$220.00
		BEAU4764874	\$3,600.00	\$220.00
		TCLU6591254	\$3,160.00	\$220.00
		SEKU5803204	\$3,600.00	\$220.00
		CMAU4148881	\$3,820.00	\$220.00
		TGHU8680998	\$2,940.00	\$220.00
		GLDU7250764	\$2,940.00	\$220.00
		TRHU5447198	\$2,940.00	\$220.00
		CMAU4532310	\$2,280.00	\$220.00
		TGHU8902101	\$1,840.00	\$220.00
		TCNU2957511	\$2,720.00	\$220.00
		CMAU9163723	\$3,820.00	\$220.00
		CMAU7125848	\$4,920.00	\$220.00
		BMOU6979855	\$2,500.00	\$220.00
		SKIU9068800	\$4,260.00	\$220.00
		TCNU8259539	\$4,260.00	\$220.00
		BMOU6420759	\$4,480.00	\$220.00
		GESU5008740	\$3,380.00	\$220.00
		GESU6370157	\$3,380.00	\$220.00
		TGBU5809375	\$3,380.00	\$220.00
		CMAU4884270	\$2,720.00	\$220.00
		APHU6703115	\$4,700.00	\$220.00
		CMAU7219248	\$7,780.00	\$220.00
		SEGU4411565	\$6,020.00	\$220.00
		CMAU9222981	\$5,140.00	\$220.00
		CXDU1819637	\$4,700.00	\$220.00
		TRLU7080258	\$4,920.00	\$220.00
		TCKU7905286	\$4,260.00	\$220.00
		FSCU8990531	\$4,260.00	\$220.00
		GLDU7539649	\$6,020.00	\$220.00
		TGHU6066300	\$5,360.00	\$220.00
		TGHU6448751	\$9,760.00	\$220.00
			Refund Subtotal for October 3, 2022	\$15,620.00
October 13, 2022	APP0759-	CMAU4884270	\$2,720.00	\$220.00

	APP0775	APHU6703115	\$4,700.00	\$220.00
		APHU7191728	\$740.00	\$185.00
		BMOU6421992	\$555.00	\$185.00
		FSCU7293682	\$555.00	\$185.00
		APHU7195209	\$1,180.00	\$220.00
		TCLU8155898	\$1,400.00	\$220.00
		CMAU7219248	\$7,780.00	\$220.00
		CMAU7132472	\$555.00	\$185.00
		TCNU8122340	\$960.00	\$220.00
		FSCU7197713	\$2,940.00	\$220.00
		GESU5810863	\$2,720.00	\$220.00
		SEGU4411565	\$6,020.00	\$220.00
		CMAU5209976	\$2,720.00	\$220.00
		CMAU9222981	\$5,140.00	\$220.00
		TRLU6617194	\$3,160.00	\$220.00
		TCLU6529833	\$2,280.00	\$220.00
		TLLU4290373	\$2,940.00	\$220.00
		TLLU5012510	\$2,940.00	\$220.00
		CMAU6511790	\$2,720.00	\$220.00
		CMAU7763056	\$2,720.00	\$220.00
		SEGU6489623	\$1,620.00	\$220.00
		CMAU4434627	\$1,400.00	\$220.00
		CXDU1819637	\$4,700.00	\$220.00
		TCNU3316317	\$2,500.00	\$220.00
		CMAU6542560	\$2,060.00	\$220.00
		TGBU5578002	\$2,280.00	\$220.00
		GESU6364806	\$3,380.00	\$220.00
		SEGU4172856	\$3,820.00	\$220.00
		SEKU4511661	\$3,820.00	\$220.00
		TCNU6027318	\$3,820.00	\$220.00
		TCNU6678644	\$3,600.00	\$220.00
		FSCU7293002	\$1,840.00	\$220.00
		CAIU9306858	\$2,940.00	\$220.00
		TRLU7080258	\$4,920.00	\$220.00
		BMOU6446310	\$3,380.00	\$220.00
		TCNU2185260	\$3,600.00	\$220.00
		APHU7234500	\$1,840.00	\$220.00
		MAGU5338248	\$1,620.00	\$220.00
		TCKU7142008	\$2,940.00	\$220.00
		TCNU2387954	\$1,620.00	\$220.00
		TCKU7905286	\$4,260.00	\$220.00
		SEGU4748387	\$3,380.00	\$220.00

		TRHU8083660	\$3,600.00	\$220.00
		TRHU8108182	\$2,060.00	\$220.00
		TGBU6115698	\$2,060.00	\$220.00
		FSCU8990531	\$4,260.00	\$220.00
		CAIU8287408	\$3,820.00	\$220.00
		TCLU1866960	\$2,720.00	\$220.00
		MAGU5725479	\$2,940.00	\$220.00
		CMAU4827970	\$3,820.00	\$220.00
		TCLU8171008	\$1,840.00	\$220.00
		GLDU7539649	\$6,020.00	\$220.00
		TGHU6066300	\$5,360.00	\$220.00
		BMOU6976727	\$4,040.00	\$220.00
		ECMU9255252	\$3,600.00	\$220.00
		FCIU9385310	\$4,920.00	\$220.00
		CMAU7807581	\$4,920.00	\$220.00
		TGHU6448751	\$9,760.00	\$220.00
		TEMU6015512	\$4,920.00	\$220.00
		TCNU5548939	\$3,380.00	\$220.00
		TCNU3603831	\$3,380.00	\$220.00
		TRHU4705087	\$4,920.00	\$220.00
		TRLU8269816	\$3,600.00	\$220.00
		SEKU5794864	\$3,380.00	\$220.00
		CMAU7141999	\$4,700.00	\$220.00
		CMAU4177914	\$5,140.00	\$220.00
		CMAU8620086	\$4,040.00	\$220.00
		FSCU8735541	\$3,380.00	\$220.00
		SEGU5135100	\$6,680.00	\$220.00
		CMAU7421623	\$6,680.00	\$220.00
			Refund Subtotal for October 13, 2022	\$15,480.00
October 14, 2022	APP0759-	APHU6703115	\$4,700.00	\$220.00
	APP0775	APHU7191728	\$740.00	\$185.00
		BMOU6421992	\$555.00	\$185.00
		FSCU7293682	\$555.00	\$185.00
		APHU7195209	\$1,180.00	\$220.00
		TCLU8155898	\$1,400.00	\$220.00
		CMAU7219248	\$7,780.00	\$220.00
		CMAU7132472	\$555.00	\$185.00
		TCNU8122340	\$960.00	\$185.00
		APHU6894480	\$740.00	\$185.00
		FSCU7197713	\$2,940.00	\$220.00

	GESU5810863	\$2,720.00	\$220.00
	SEGU4411565	\$6,020.00	\$220.00
	CMAU5209976	\$2,720.00	\$220.00
	CMAU9222981	\$5,140.00	\$220.00
	BMOU5615648	\$960.00	\$220.00
	TRLU6617194	\$3,160.00	\$220.00
	TCLU6529833	\$2,280.00	\$220.00
	TLLU4290373	\$2,940.00	\$220.00
	TLLU5012510	\$2,940.00	\$220.00
	CMAU6511790	\$2,720.00	\$220.00
	CMAU7763056	\$2,720.00	\$220.00
	SEGU6489623	\$1,620.00	\$220.00
	CMAU4434627	\$1,400.00	\$220.00
	CXDU1819637	\$4,700.00	\$220.00
	TCNU3316317	\$2,500.00	\$220.00
	CMAU6542560	\$2,060.00	\$220.00
	TGBU5578002	\$2,280.00	\$220.00
	FFAU4448228	\$960.00	\$220.00
	GESU6364806	\$3,380.00	\$220.00
	SEGU4172856	\$3,820.00	\$220.00
	SEKU4511661	\$3,820.00	\$220.00
	TCNU6027318	\$3,820.00	\$220.00
	TCNU6678644	\$3,600.00	\$220.00
	FSCU7293002	\$1,840.00	\$220.00
	CAIU9306858	\$2,940.00	\$220.00
	FCIU7305193	\$1,180.00	\$220.00
	TRLU7080258	\$4,920.00	\$220.00
	BMOU6446310	\$3,380.00	\$220.00
	TCNU2185260	\$3,600.00	\$220.00
	APHU7234500	\$1,840.00	\$220.00
	MAGU5338248	\$1,620.00	\$220.00
	TCKU7142008	\$2,940.00	\$220.00
	TCNU2387954	\$1,620.00	\$220.00
	TCKU7905286	\$4,260.00	\$220.00
	SEGU4748387	\$3,380.00	\$220.00
	TRHU8083660	\$3,600.00	\$220.00
	TRHU8108182	\$2,060.00	\$220.00
	TGBU6115698	\$2,060.00	\$220.00
	FSCU8990531	\$4,260.00	\$220.00
	CAIU8287408	\$3,820.00	\$220.00
	SEGU4349788	\$1,620.00	\$220.00
	TCNU4462717	\$1,620.00	\$220.00

		TCLU1866960	\$2,720.00	\$220.00
		MAGU5725479	\$2,940.00	\$220.00
		CMAU4827970	\$3,820.00	\$220.00
		TCLU8171008	\$1,840.00	\$220.00
		GLDU7539649	\$6,020.00	\$220.00
		TGHU6066300	\$5,360.00	\$220.00
		BMOU6976727	\$4,040.00	\$220.00
		ECMU9255252	\$3,600.00	\$220.00
		FCIU9385310	\$4,920.00	\$220.00
		CMAU7807581	\$4,920.00	\$220.00
		TGHU6448751	\$9,760.00	\$220.00
		ECMU9803649	\$2,720.00	\$220.00
		TRLU8269816	\$3,600.00	\$220.00
		SEKU5794864	\$3,380.00	\$220.00
		CMAU7141999	\$4,700.00	\$220.00
		TCLU1857510	\$2,940.00	\$220.00
		CMAU4177914	\$5,140.00	\$220.00
		CMAU8620086	\$4,040.00	\$220.00
		FSCU8735541	\$3,380.00	\$220.00
		TEMU7437810	\$3,820.00	\$220.00
		TLLU5002933	\$4,040.00	\$220.00
		SEGU5135100	\$6,680.00	\$220.00
		CMAU7421623	\$6,680.00	\$220.00
			Refund Subtotal for October 14, 2022	\$16,510.00
November 10, 2022	APP0776-	SEKU5889893	\$1,840.00	\$220.00
	APP0777;	TCNU8293554	\$555.00	\$185.00
	RX0231-	TGHU6418490	\$1,840.00	\$220.00
	RX0236	TLLU5033641	\$555.00	\$185.00
		GCXU5855845	\$2,060.00	\$220.00
		SEGU5089108	\$2,060.00	\$220.00
		TGHU6393371	\$740.00	\$185.00
		TLLU8885467	\$2,940.00	\$220.00
		TCKU6357700	\$2,720.00	\$220.00
		CMAU6371370	\$5,800.00	\$220.00
			Refund Subtotal for November 10, 2022	\$2,095.00
November 11, 2022	APP0776-	SEKU5889893	\$1,840.00	\$220.00
	APP0777;	TCNU8293554	\$555.00	\$185.00

